

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 16
JUDICIAL OFFICER: BENJAMIN T REYES II
HEARING DATE: 09/16/2026

**INSTRUCTIONS FOR CONTESTING TENTATIVE RULINGS
IN DEPARTMENT 16**

The tentative ruling will become the ruling of the Court unless by 4:00 P.M. of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 16 (Dept16@contracosta.courts.ca.gov) to request argument and **must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why**. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00 P.M. of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

The prevailing party must prepare and e-file a proposed order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER
NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-

<https://www.zoomgov.com/j/1619504895?pwd=N0V1N3JFRnJ0TEVoSDNrTGRzakF3UT09>

ID: 161 950 4895

Password: 812674

Courtroom Clerk's Session

1. 9:00 AM CASE NUMBER: C24-02813
CASE NAME: ANITA HERNANDEZ VS. GOLDEN GATE BELL LLC
***FURTHER CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

This Case Management Conference ("CMC") trails Lines 14 and 15. Parties are ordered to appear for the CMC, unless the tentative rulings are uncontested.

2. 9:00 AM CASE NUMBER: C24-03464
CASE NAME: ANITA HERNANDEZ VS. GOLDEN GATE BELL LLC
***FURTHER CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

This Case Management Conference ("CMC") trails Lines 14 and 15. Parties are ordered to appear for the CMC, unless the tentative rulings are uncontested.

3. 9:00 AM CASE NUMBER: C25-00268
CASE NAME: DAVID SISNEROS VS. UNITED PARCEL SERVICE, INC.
***FURTHER CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

This Case Management Conference ("CMC") trails Line16. Parties are ordered to appear for the CMC, unless the tentative rulings are uncontested.

4. 9:00 AM CASE NUMBER: C25-01807
CASE NAME: ANTHONY MAPALO VS. ERIC MUHAMMAD
***FURTHER CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

This CMC Trails Line 20. Parties are ordered to appear for the CMC, unless the tentative rulings are uncontested.

5. 9:00 AM CASE NUMBER: C25-03171
CASE NAME: JOSIAH HOLLOWAY VS. SHAHS OF SHIRAZ, INC.
***FURTHER CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

This CMC Trails Line 21. Parties are ordered to appear for the CMC, unless the tentative rulings are uncontested.

6. 9:00 AM CASE NUMBER: C25-03352
CASE NAME: LUIS GOMEZ PASTRANA VS. DCS TRANSPORTATION
***CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

This CMC Trails Line 22. Parties are ordered to appear for the CMC, unless the tentative rulings are uncontested.

Law & Motion

7. 9:00 AM CASE NUMBER: C23-00009
CASE NAME: MICHELLE DALY VS. MICHAEL VISTNES, M.D.
HEARING ON SUMMARY MOTION SUMMARY JUDGMENT/MOTION FOR SUMMARY

ADJUDICATION (SEE 4/29/26 HEARING)

FILED BY: SKINSPIRIT ESSENTIAL, LLC,

TENTATIVE RULING:

On the Court's own motion, the hearing on this motion is continued to September 30, 2026, at 9:00 a.m., in Department 16. No appearance is required on September 16, 2026.

8. 9:00 AM CASE NUMBER: C23-00009
CASE NAME: MICHELLE DALY VS. MICHAEL VISTNES, M.D.
HEARING ON SUMMARY MOTION SUMMARY JUDGMENT/MOTION FOR SUMMARY
ADJUDICATION (SEE 4/29/26 HEARING)
FILED BY: VISTNES, M.D., MICHAEL DEAN
TENTATIVE RULING:

On the Court's own motion, the hearing on this motion is continued to September 30, 2026, at 9:00 a.m., in Department 16. No appearance is required on September 16, 2026.

9. 9:00 AM CASE NUMBER: C23-00009
CASE NAME: MICHELLE DALY VS. MICHAEL VISTNES, M.D.
HEARING ON SUMMARY MOTION FOR SUMMARY JUDGMENT/ADJUDICATION FILED
FILED BY: WHEATON, R.N., JEFF
TENTATIVE RULING:

On the Court's own motion, the hearing on this motion is continued to September 30, 2026, at 9:00 a.m., in Department 16. No appearance is required on September 16, 2026.

10. 9:00 AM CASE NUMBER: C23-02401
CASE NAME: KIARA ROSS VS. KOTLIER ERNEST M.
***HEARING ON MOTION IN RE: PRELIMINARY APPROVAL (SET BY THE COURTROOM)**
FILED BY:
TENTATIVE RULING:

SUMMARY

Plaintiffs Kiara Ross, Felicia Costa, and Mark Piepowski ("Plaintiffs") Motion for Preliminary Approval of Class Action Settlement with Defendants Sequoia Equities, Incorporated and Alder Creek Management, Inc.'s (jointly referred to as "Sequoia Equities") is granted as set forth herein. No appearance is required at the hearing on September 16, 2026.

BACKGROUND AND KEY TERMS

This class action arises from Sequoia Equities deposit administration practices at approximately 67 California apartment complexes. Plaintiffs who are former tenants at Sequoia Equities managed properties, allege systematic violations of California Civil Code § 1950.5. Specifically, Plaintiffs contend that Sequoia Equities uniformly failed to provide itemized statements with supporting vendor invoices within the statutorily mandated 21-day period after tenants vacated, and improperly reported unsubstantiated alleged debts to collection agencies, damaging tenants' credit.

The litigation commenced in September 2023. Following initial discovery disputes, the parties entered into a comprehensive stipulation in December 2024, streamlining the case for mediation. Pursuant to that stipulation, Defendants produced a randomized 20% sample of tenant files comprising over 608,000 pages of documents, including Final Accounting Statements ("FAS Packets"). Plaintiffs' counsel manually reviewed 1,048 FAS Packets and determined that approximately 85.6% were non-

compliant with Civil Code section 1950.5, as they lacked required vendor invoices and instead contained only internally generated estimates or rate sheets.

The parties participated in a full-day mediation on October 17, 2025, before the Honorable Peter D. Lichtman (Ret.). Though mediation did not immediately produce settlement, the parties accepted Judge Lichtman's mediator's proposal on November 26, 2025. Following months of negotiation, the parties executed a comprehensive Settlement Agreement.

The Settlement creates two subclasses: (1) the Security Deposit Class, comprising approximately 15,000 former tenants whose leaseholds terminated between September 25, 2019, and the date of preliminary approval, who had in excess of \$125 deducted from their security deposits without receiving supporting invoices; and (2) the Defamation Class, comprising approximately 2,000 former tenants who were reported to collection agencies for alleged post-deposit balances. The Defamation Class excludes debts reduced to judgment.

The Gross Settlement Amount totals approximately \$3.1 million, consisting of \$1.8 million in cash and \$1.3 million in debt relief for the Defamation Class. After deductions for settlement administration costs (capped at \$50,000), attorneys' fees (up to 33.3% of the Total Settlement Amount), litigation expenses, and service payments to the three Named Plaintiffs (capped at \$10,000 each, totaling \$30,000), the Net Settlement Amount will be allocated 90% to the Security Deposit Class and 10% to the Defamation Class.

The Security Deposit Class will utilize a claims-made distribution structure, with estimated individual recoveries between \$132.14 and \$480 assuming a 10-35% claims rate. The Defamation Class will receive automatic pro rata distributions without a claims process, with estimated individual recoveries of approximately \$660 (comprising debt relief and cash). Defendants have agreed to cease all collection efforts against Defamation Class members. Unclaimed funds from the Security Deposit Class will be distributed via cy pres to the California State Bar Justice Gap Fund, with no governance role for the parties or counsel.

The Settlement provides a broad release of all claims arising from or relating to the facts alleged in the operative complaint, including claims under Civil Code section 1950.5, the Unfair Competition Law (Bus. & Prof. Code §§ 17200 et seq.), Negligence, and Defamation. The Named Plaintiffs will execute broader general releases with Civil Code section 1542 waivers. The Settlement is contingent upon preliminary and final approval by this Court, and the parties stipulate to conditional class certification for settlement purposes only.

The proposed notice program includes direct mail and email distribution by Xpand Legal, a third-party administrator with experience in Section 1950.5 class actions, with notice translated into Spanish. Class members will have 45 days to opt out or object. The parties seek preliminary approval, conditional class certification, approval of the notice program, and scheduling of a final approval hearing.

ANALYSIS

The primary determination is whether the proposed settlement is "fair, reasonable, and adequate" under *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801. The factors include "the strength of plaintiffs' case, the risk, expense, complexity and likely duration of further litigation, the risk of

maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction ... to the proposed settlement." (See also, *Amaro v. Anaheim Arena Management, LLC* (2021) 69 Cal.App.5th 521)

California law provides guidance concerning judicial approval of class action settlements. First, public policy favors settlement (*Neary v. Regents of Univ. of Cal.* (1992) 3 Cal.4th 273), but the court must not approve an agreement contrary to law or public policy (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127). Moreover, "[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter." (*Cal. State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) Consequently, courts have noted that *Neary* does not apply where public rights are implicated, because "[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutary purpose." (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

Attorneys' Fees

Plaintiff seeks attorney fees of \$599,400.00 representing one-third of the total settlement amount of \$1.8 million, relying on the common fund doctrine. Even under the common fund theory, however, the fee award should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the lodestar cross-check as a method to determine whether the percentage allocated is reasonable. The Court stated: "If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment." (*Id.* at p. 505.) Following typical practice, however, the Court will not consider the fee award at this preliminary approval stage, but reserves review for final approval.

Similarly, reasonable litigation costs and the requested representative payment of \$10,000 for each named plaintiff will be reviewed at the time of final approval. Criteria for evaluating representative payment requests are discussed in *Clark v. American Residential Services, LLC* (2009) 175 Cal.App.4th 785, 804-807.

The Court having considered Plaintiffs' Unopposed Motion for Preliminary Approval of Class Action Settlement, the Memorandum of Points and Authorities, the Declaration of Jeffrey L. Hogue, the Class Action Settlement and Release Agreement and Addendum, all exhibits thereto, and the files and records in this action; and good cause appearing therefor, the Court finds and orders as follows:

CONCLUSION AND ORDERS

1. The Court conditionally certifies the following Settlement Classes pursuant to Code of Civil Procedure section 382 and California Rule of Court 3.769 for settlement purposes only:
 - a. Security Deposit Class: All former tenants of Defendants' California properties whose leaseholds terminated between September 25, 2019, and the date of preliminary approval of this Settlement, and who had in excess of \$125 of their security deposits retained for cleaning, repairs, and/or replacements combined, without supporting invoices as required by Civil Code section 1950.5.

b. Defamation Class: All former tenants who were reported to a collection agency as a result of any monies allegedly owed for turnover charges after disposition of their security deposit(s), excluding any debts that have been reduced to judgment, between September 25, 2019, and the date of preliminary approval.

2. The Court finds that the Settlement Classes satisfy the requirements of Code of Civil Procedure section 382: (a) the classes are sufficiently numerous (approximately 15,000 Security Deposit Class members and 2,000 Defamation Class members), making joinder impracticable; (b) common questions of law and fact predominate concerning Defendants' uniform security deposit administration practices and collection reporting procedures; (c) the claims of the Named Plaintiffs are typical of the Settlement Classes; and (d) the Named Plaintiffs and Class Counsel will adequately represent the Settlement Classes' interests. The Court further finds that a class action is superior to other available methods for the fair and efficient adjudication of this controversy.

3. The Court preliminarily approves the Class Action Settlement and Release Agreement, including Addendum No. 1 (collectively, the "Settlement Agreement"), attached as Exhibit 1 to the Declaration of Jeffrey L. Hogue, as fair, reasonable, and adequate within the meaning of Code of Civil Procedure section 382 and California Rule of Court 3.769.

4. The Court finds that the Settlement is the product of serious, informed, non-collusive, arms-length negotiations conducted by experienced counsel, with the assistance of a neutral mediator, the Honorable Peter D. Lichtman (Ret.).

5. The Court finds that the \$3.1 million gross settlement (\$1.8 million cash plus \$1.3 million debt relief), with the Net Settlement Amount allocated 90% to the Security Deposit Class and 10% to the Defamation Class, falls within the range of reasonableness considering the risks of continued litigation, the strength of Plaintiffs' claims, the stage of proceedings, and the substantial benefits to be provided to the Settlement Classes.

6. The Court finds that the Settlement is contingent upon final approval by this Court and that the parties have stipulated to conditional class certification for settlement purposes only.

7. The Court approves the notice program described in the Settlement Agreement and designates Xpand Legal, Consulting as the Settlement Administrator.

8. The Court finds that the proposed notice, distributed via direct mail and email to the last known addresses of Settlement Class Members, with publication on a dedicated settlement website and translation into Spanish, constitutes the best practicable notice under the circumstances and satisfies the requirements of California Rule of Court 3.769(f) and due process.

9. The Court finds that the notice fairly apprises Settlement Class Members of: (a) the nature of the action and the Settlement; (b) their right to opt out of the Settlement; (c) their right to object to the Settlement; (d) the procedure for submitting claims (for Security Deposit Class members); and (e) the date of the final approval hearing.

10. A hearing for final approval of the Settlement ("Final Approval Hearing") will be scheduled in

Department 16 no later than one (1) year from the date of entry of this order. Counsel shall contact the Departmental Clerk to request a hearing date.

11. The Court will consider at the Final Approval Hearing: (a) whether to grant final approval of the Settlement; (b) any objections thereto; (c) the application for attorneys' fees and costs; and (d) the applications for service payments to the Named Plaintiffs.

12. The Settlement Administrator is authorized to administer the Settlement in accordance with the terms of the Settlement Agreement, including: (a) processing and verifying claims; (b) calculating pro rata distributions; (c) maintaining the Qualified Settlement Fund; and (d) distributing funds to eligible Settlement Class Members.

13. The Settlement Administrator shall file with the Court and serve on Class Counsel and Defendants' Counsel periodic reports regarding the claims process, including the number of claims received, approved, and denied.

14. Settlement Class Members who wish to exclude themselves from the Settlement must submit a written request for exclusion postmarked no later than 45 days from the date of mailing of the notice, or such other date as the Court may establish.

15. Settlement Class Members who wish to object to the Settlement must file their objections with the Court and serve them on Class Counsel and Defendants' Counsel no later than 30 days prior to the Final Approval Hearing, or such other date as the Court may establish.

16. If the Settlement is not finally approved, or if the Court's approval is reversed or vacated on appeal, this Order shall be vacated, the Settlement shall be null and void, and the parties shall resume litigation as if no settlement had been reached. The conditional class certification granted herein shall not be binding in any subsequent litigation.

17. Counsel are directed to prepare an order reflecting this ruling, the other findings in the previously submitted proposed order, attaching a copy of this ruling. Where there is a conflict in the provisions of the proposed order and this ruling, the terms of this ruling prevail.

18. No appearance is required at the hearing on September 16, 2026.

11. 9:00 AM CASE NUMBER: C24-00068

CASE NAME: JOSHUA LOPEZ VS. VEOLIA NORTH AMERICA, LLC., A DELAWARE LIMITED LIABILITY COMPANY

***HEARING ON MOTION IN RE: FINAL APPROVAL HEARING (SET BY THE COURTROOM)**

FILED BY:

TENTATIVE RULING:

Summary

Plaintiff Joshua Lopez, on behalf of himself and those similarly situated ("Plaintiff") Motion for Final Approval of the Class Action and PAGA Settlement against Defendant Veolia North America LLC ("Defendant") is approved pursuant to the ruling herein.

Background

This wage and hour class action and Private Attorneys General Act ("PAGA") representative action was commenced by Plaintiff Joshua J. Lopez on January 9, 2024, against Defendants Veolia North America, LLC and related entities (collectively "Veolia"). The operative complaint alleged twelve causes of action, including failure to pay minimum wages and overtime, meal and rest period violations, inaccurate wage statements, failure to provide records, and unfair business practices under Business and Professions Code section 17200. Plaintiff also filed a PAGA notice with the Labor and Workforce Development Agency ("LWDA") on January 9, 2024.

The Class Period covers January 9, 2020, through April 30, 2025, and encompasses all non-exempt, hourly employees who worked at seventeen specified municipal water sites across California. The PAGA Period covers January 9, 2023, through April 30, 2025. Prior to mediation, the parties engaged in informal discovery, including production of a class list and a 25% sampling of timekeeping and payroll records. Plaintiff retained Berger Consulting Group to prepare damage calculations and exposure analyses.

On February 19, 2025, the parties participated in a full-day mediation with Lonnie Giamela, Esq., resulting in a settlement reached through the mediator's proposal. The Gross Settlement Amount is \$1,305,000.00, allocated as follows:

- \$435,000.00 (33.3%) in attorneys' fees to Class Counsel;
- \$16,105.91 in litigation costs;
- \$8,500.00 in administration costs to Apex Class Action Administrators;
- \$10,000.00 service award to Plaintiff Lopez; and
- \$75,000.00 in PAGA penalties (with \$56,250.00 payable to LWDA and \$18,750.00 to Aggrieved Employees). The Net Settlement Amount of approximately \$760,394.09 will be distributed to Participating Class Members on a claims-made basis without reversion to Defendants.

The settlement provides for automatic *pro rata* distributions to the 225 Aggrieved Employees for the PAGA portion, with individual PAGA payments estimated between \$2.44 and \$148.83 (average \$87.29). Class Members cannot opt out of the PAGA settlement. For the class portion, individual payments are estimated between \$25.93 and \$7,180.28 (average \$2,706.99), allocated 20% to wages (W-2) and 80% to settlement interest and penalties (1099). The settlement is an opt-out class with no claim form requirement.

On May 6, 2026, the Court granted preliminary approval, appointed Plaintiff as Class Representative and D.Law as Class Counsel, approved Apex as Administrator, and established notice procedures. On July 10, 2026, Apex mailed class notices to 307 Class Members via first-class mail after NCOA processing. The response deadline was September 8, 2026, extended to September 22, 2026 for remailed notices. To date, there has been only one request for exclusion (Thomas Garcia) and zero objections. Class Counsel has worked approximately 118.6 attorney hours with a lodestar of \$156,989.00 (or \$166,709.90 including litigation support), yielding a multiplier of 2.6-2.8 on the requested \$435,000.00 fee award. The settlement releases all claims alleged in the operative complaint, and the parties have submitted the required PAGA notification to LWDA under Labor Code section 2699(l)(2).

Analysis

The primary determination to be made is whether the proposed settlement is “fair, reasonable, and adequate,” under *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801, including “the strength of plaintiffs’ case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction ... to the proposed settlement.” (See also *Amaro v. Anaheim Arena Management, LLC* (2021) 69 Cal.App.5th 521)

Because this matter also proposes to settle PAGA claims, the Court also must consider the criteria that apply under that statute. Recently, the Court of Appeal’s decision in *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, provided guidance on this issue. In *Moniz*, the court found that the “fair, reasonable, and adequate” standard applicable to class actions applies to PAGA settlements. (*Id.*, at 64.) The Court also held that the trial court must assess “the fairness of the settlement’s allocation of civil penalties between the affected aggrieved employees[.]” (*Id.*, at 64-65.)]

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, “[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter.” (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because “[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutary purpose.” (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

The settlement contains release language covering all claims and causes of action, alleged or which could have reasonably been alleged based on the allegations in the operative pleading, including a number of specified claims. Under recent appellate authority, the limitation to those claims with the “same factual predicate” as those alleged in the complaint is critical. (*Amaro v. Anaheim Arena Mgmt., LLC* (2021) 69 Cal.App.5th 521, 537 (“A court cannot release claims that are outside the scope of the allegations of the complaint.”) “Put another way, a release of claims that goes beyond the scope of the allegations in the operative complaint’ is impermissible.” (*Id.*, quoting *Marshall v. Northrop Grumman Corp.* (C.D. Cal.2020) 469 F.Supp.3d 942, 949.)

Attorney fees

Plaintiff seeks one-third of the total settlement amount as fees \$435,000.00 relying on the “common fund” theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: “If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment.” (*Id.*, at 505.)

Litigation costs of \$16,105.91 are reasonable and are approved. Settlement administration costs of

\$8,500.00 are reasonable and are approved. The requested representative payment of \$10,000 for Plaintiff is reviewed now, under the criteria for evaluation of representative payment requests discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807.

The Court having considered Plaintiff's Motion for Final Approval of Class Action and PAGA Settlement and Request for Attorneys' Fees, Costs, and Class Representative's Enhancement Award; the Memorandum of Points and Authorities; the Declaration of Marta Manus and exhibits thereto; the Declaration of Elizabeth Botero Bravo for Apex Class Action Administrators; the Declaration of Class Representative Joshua J. Lopez; all papers on file; and the proceedings had at the Final Approval Hearing on September 16, 2026; and good cause appearing therefor, the Court finds and orders as follows:

CONCLUSION

I. JURISDICTION AND VENUE

1. The Court has jurisdiction over this matter pursuant to Article VI of the California Constitution, Code of Civil Procedure section 382, and the California Rules of Court.
2. Venue is proper in Contra Costa County.

II. CLASS CERTIFICATION

1. The Court makes final its prior conditional certification of the following Class pursuant to Code of Civil Procedure section 382 and California Rule of Court 3.769: **Class Definition:** All non-exempt, hourly employees who worked for Defendants in California at the Settling Locations (the seventeen municipal water sites located in Arvin, Burlingame, Ontario (2), Discovery Bay, East Palo Alto, Fillmore, Hollister, Lathrop, Palm Springs, Richmond, Rio Vista, Santa Paula, Banning, Burbank, Jurupa Valley, and El Segundo) during the Class Period (January 9, 2020, through April 30, 2025).
2. The Court certifies the following Aggrieved Employee group for PAGA purposes pursuant to Labor Code section 2699: **"Aggrieved Employees:** All non-exempt, hourly employees who worked for Defendants in California at the Settling Locations during the PAGA Period (January 9, 2023, through April 30, 2025)".
3. The Court finds that the Class and Aggrieved Employee group satisfy the requirements of Code of Civil Procedure section 382 and Labor Code section 2699: (a) the Class is sufficiently numerous (307 members); (b) common questions of law and fact predominate; (c) the claims of the Class Representative are typical; and (d) the Class Representative and Class Counsel will adequately represent the interests of the Class and Aggrieved Employees.

III. NOTICE AND OPT-OUT PROCEDURE

1. The Court finds that the notice program approved at the preliminary approval stage was fully implemented. Apex Class Action Administrators mailed Class Notices via first-class U.S. Mail on July 10, 2026, to 307 Class Members at their last known addresses after NCOA processing.
2. The Court finds that the Class Notice: (a) fairly and adequately described the Settlement; (b) informed Class Members of their right to opt out, object, or dispute workweeks; (c) provided

applicable deadlines; (d) advised of the Final Approval Hearing date; and (e) complied with due process and California Rule of Court 3.769.

3. The Court notes that only one Class Member (Thomas Garcia) submitted a timely request for exclusion, and zero objections were received. This represents a 99.7% participation rate.

IV. FINAL APPROVAL OF SETTLEMENT

1. The Court **grants** final approval to the Class Action and PAGA Settlement Agreement and Addendum (the "Settlement Agreement"), attached as Exhibit 1 to the Manus Declaration, finding it fair, reasonable, and adequate under Code of Civil Procedure section 382 and California Rule of Court 3.769.
2. The Court finds that the Settlement was reached through arm's-length negotiations with the assistance of an experienced mediator, Lonnie Giamela, Esq., after meaningful discovery including a 25% sample of timekeeping and payroll records and expert damage calculations.
3. The Court finds that the \$1,305,000.00 Gross Settlement Amount, with \$760,394.09 Net Settlement Amount to be distributed to Participating Class Members, represents a fair compromise considering: (a) the risks of continued litigation; (b) Defendants' affirmative defenses; (c) the uncertainty of class certification; (d) the complexity of wage and hour claims; and (e) the substantial benefits to be provided to Class Members without the need for individual claims forms or reversion of unclaimed funds to Defendants.
4. The Court finds that the Settlement is in the best interests of the Class and Aggrieved Employees and approves the release of all claims alleged in the Operative Complaint.

V. ATTORNEYS' FEES AND COSTS

1. The Court awards Class Counsel attorneys' fees in the amount of \$435,000.00, representing 33.3% of the Gross Settlement Amount. The Court finds this percentage fair and reasonable under the common fund doctrine, as established in *Laffitte v. Robert Half International Inc.* (2016) 1 Cal.5th 480 and *Serrano v. Priest* (1977) 20 Cal.3d 25.
2. The Court finds that the lodestar cross-check supports this award: Class Counsel worked 118.6 attorney hours with a lodestar of \$156,989.00 (or \$166,709.90 including litigation support), yielding a multiplier of 2.6-2.8, which falls within the accepted range of 1.0 to 4.0 for common fund cases.
3. The Court finds that Class Counsel's hourly rates (\$1,687 for Alvin B. Lindsay, \$1,350 for Enoch J. Kim, \$1,227 for Marta Manus, \$1,325 for Rose Sorial, and \$1,019 for Tania Fonseca) are reasonable and commensurate with prevailing rates for attorneys of comparable experience in complex wage and hour litigation.
4. The Court awards Class Counsel litigation costs in the amount of \$16,105.91, which is below the \$30,000.00 cap specified in the Settlement Agreement and represents reasonable expenses for mediator fees, expert fees, and filing costs.

VI. ADMINISTRATION COSTS AND SERVICE AWARD

1. The Court approves administration costs of \$8,500.00 to Apex Class Action Administrators for settlement administration services.
2. The Court approves a Class Representative service award of \$10,000.00 to Plaintiff Joshua J.

Lopez, finding it fair and reasonable compensation for his time (approximately 65 hours), risk, and contribution to the litigation, consistent with *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785.

VII. PAGA SETTLEMENT APPROVAL

1. The Court grants final approval to the PAGA portion of the Settlement pursuant to Labor Code section 2699(l)(2), finding it fair, reasonable, and adequate in view of PAGA's purposes to remediate present labor law violations and deter future violations, consistent with *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56 and *Amaro v. Anaheim Arena Management, LLC* (2021) 69 Cal.App.5th 521.
2. The Court approves the allocation of \$75,000.00 in PAGA penalties, with \$56,250.00 (75%) payable to the LWDA and \$18,750.00 (25%) payable to the 225 Aggrieved Employees on a pro rata basis.

VIII. DISTRIBUTION AND IMPLEMENTATION

1. The Settlement Administrator is directed to distribute funds to Participating Class Members within 30 days of this Order, with checks valid for 180 days. For current employees whose checks are returned undeliverable, the Administrator shall arrange delivery through Defendants' payroll.
2. Any uncashed checks shall be handled in accordance with the Settlement Agreement. Unclaimed funds shall not revert to Defendants.

IX. JUDGMENT AND RELEASE

1. Judgment is entered in accordance with this Order. Upon entry of this Order, all Participating Class Members and Aggrieved Employees are bound by the releases set forth in the Settlement Agreement.
2. The Court retains jurisdiction over this action for purposes of enforcing the Settlement Agreement, supervising distribution, and resolving any disputes arising from the implementation of this Order.

X. MISCELLANEOUS

1. Class Counsel are directed to prepare an order reflecting this tentative ruling and the other findings in the previously submitted proposed order, attaching a copy of this ruling.
2. Plaintiffs' counsel is ordered to schedule a compliance hearing with the clerk of the court no later than one year from the date of entry of this order, and is ordered to submit a compliance statement preferably in the form of a declaration of distributions by the Administrator at least ten (10) court days before the compliance hearing date.
3. The Administrator is ordered to withhold 5% of the attorney's fees pending satisfactory compliance as found by the Court at or before the compliance hearing.

12. 9:00 AM CASE NUMBER: C24-00106
CASE NAME: YEKATERINA RAMIREZ VS. THE SPEECH PATHOLOGY GROUP, INC.
***HEARING ON MOTION IN RE: FINAL APPROVAL (SET BY THE COURTROOM)**

FILED BY:

TENTATIVE RULING:

Summary

Plaintiff Yekaterina Ramirez, on behalf of herself and those similarly situated, ("Plaintiff") filed this Motion for Final Approval of the Class Action and PAGA Settlement Agreement with Defendant The Speech Pathology Group, Inc. ("Defendant."). The motion is **granted** as set forth herein.

Background

This wage and hour class action settlement resolves claims asserted by Plaintiff against Defendant. on behalf of approximately 1,501 current and former non-exempt California employees who worked during the Class Period from January 16, 2020, through July 27, 2025. Defendant has agreed to pay a Gross Settlement Amount of \$1,875,000.00 to resolve all class claims, including allegations of unpaid minimum and overtime wages, meal and rest period violations, wage statement violations, untimely final pay, and unfair business practices, as well as claims under the Private Attorneys General Act of 2004 ("PAGA") for the period from January 16, 2023, through July 27, 2025.

The settlement provides for a non-reversionary, no-claims-made distribution structure whereby Participating Class Members will receive *pro rata* shares of the Net Settlement Amount without submitting claim forms. The Settlement Administrator, Apex Class Action, LLC, mailed notice to 1,587 Class Members on July 9, 2026, with a Response Deadline of August 24, 2026. To date, no Class Members have requested exclusion, submitted objections, or disputed workweek calculations, and sixteen notices were deemed undeliverable after skip tracing efforts. The estimated average Individual Class Payment is \$724.67 per Participating Class Member, though actual amounts will vary based on workweeks during the Class Period.

The Gross Settlement Amount will be allocated as follows:

- (1) \$624,999.99 in attorneys' fees (one-third of the Gross Settlement Amount) to Class Counsel Lavi & Ebrahimian, LLP;
- (2) \$35,000.00 in litigation costs (though only \$27,090.73 was incurred);
- (3) \$9,000.00 Class Representative Service Payment to Plaintiff Yekaterina Ramirez;
- (4) \$15,950.00 in Administration Expenses;
- (5) \$40,000.00 in PAGA Penalties (with \$30,000.00 to the LWDA and \$10,000.00 to Aggrieved Employees); and
- (6) the remaining Net Settlement Amount to be distributed *pro rata* to Participating Class Members based on workweeks.

Individual Class Payments will be tax-allocated with 10% reported as wages on Form W-2 (subject to withholding) and 90% reported on Form 1099 (non-wage portion). Uncashed checks remaining after 180 days will be transmitted to the Cy Pres Recipient, Legal Aid Foundation of Los Angeles, leaving no unpaid residue. The settlement includes an escalator provision whereby the Gross Settlement Amount

increases proportionally if total workweeks exceed 79,200 (10% above the estimated 72,000), or Defendant may elect to end the Class Period early.

The settlement releases all wage and hour claims alleged in the Operative Complaint, including claims under Labor Code sections 201-203, 226, 226.7, 510, 512, 1194, and 1197, Business and Professions Code section 17200, and PAGA claims for civil penalties, while preserving rights to enforce the settlement agreement and claims for vested benefits, unemployment, disability, social security, or workers' compensation. Released Parties include Defendant and its related entities, parents, subsidiaries, affiliates, officers, directors, employees, and agents.

The settlement was reached after extensive arm's-length negotiations, including a full-day mediation with Steven J. Serratore, Esq., and informal discovery exchange involving review of Defendant's policies, time records, payroll data, and employee handbooks. Defendant denies all allegations and liability but agreed to settle to avoid the uncertainty, expense, and delay of continued litigation. Plaintiff faced significant risks regarding class certification, Defendant's compelling defenses regarding good faith compliance and lack of willfulness, and the substantial burden of proving damages at trial.

The settlement satisfies the requirements for final approval under Code of Civil Procedure section 382 and Rule 3.769 of the California Rules of Court. It is fair, adequate, and reasonable, providing substantial monetary recovery to the Class while avoiding the risks of non-recovery inherent in wage and hour litigation. The requested attorneys' fees of one-third of the common fund are appropriate under the common fund doctrine, consistent with California Supreme Court precedent in *City & County of San Francisco v. Sweet* (1995) 12 Cal.4th 105 and *Quinn v. State* (1975) 15 Cal.3d 162, and align with Ninth Circuit and California appellate authority approving percentage-based fee awards in class actions.

Analysis

The primary determination to be made is whether the proposed settlement is "fair, reasonable, and adequate," under *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801, including "the strength of plaintiffs' case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction ... to the proposed settlement." (See also *Amaro v. Anaheim Arena Management, LLC* (2021) 69 Cal.App.5th 521)

Because this matter also proposes to settle PAGA claims, the Court also must consider the criteria that apply under that statute. Recently, the Court of Appeal's decision in *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, provided guidance on this issue. In *Moniz*, the court found that the "fair, reasonable, and adequate" standard applicable to class actions applies to PAGA settlements. (*Id.*, at 64.) The Court also held that the trial court must assess "the fairness of the settlement's allocation of civil penalties between the affected aggrieved employees[.]" (*Id.*, at 64-65.)]

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, "[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter." (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically

noted that *Neary* does not always apply, because “[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutatory purpose.” (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

The settlement contains release language covering all claims and causes of action, alleged or which could have reasonably been alleged based on the allegations in the operative pleading, including a number of specified claims. Under recent appellate authority, the limitation to those claims with the “same factual predicate” as those alleged in the complaint is critical. (*Amaro v. Anaheim Arena Mgmt., LLC* (2021) 69 Cal.App.5th 521, 537 (“A court cannot release claims that are outside the scope of the allegations of the complaint.”) “Put another way, a release of claims that goes beyond the scope of the allegations in the operative complaint’ is impermissible.” (*Id.*, quoting *Marshall v. Northrop Grumman Corp.* (C.D. Cal.2020) 469 F.Supp.3d 942, 949.)]

Attorney fees

Class Counsel seeks one-third of the total settlement amount as fees \$624,999.99 relying on the “common fund” theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: “If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment.” (*Id.*, at 505.)

Litigation costs of up to \$35,000.00 (though only \$27,090.73 was incurred) are reasonable and are approved. Settlement administration costs of \$15,950.00 in are reasonable and are approved.

The requested representative payment of \$9,000 for plaintiff is reviewed now, under the criteria for evaluation of representative payment requests discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807.

Conclusion

1. Final Approval: The Settlement Agreement is hereby approved as fair, adequate, and reasonable. The Court **grants** final approval to the class action settlement pursuant to Code of Civil Procedure section 382 and California Rules of Court, rule 3.769.
2. Class Certification: The Settlement Class defined herein is certified for settlement purposes only.
3. Designations: Plaintiff Yekaterina Ramirez is designated as Class Representative and Lavi & Ebrahimian, LLP as Class Counsel for settlement purposes.
4. Funding: Defendant shall fully fund the Gross Settlement Amount of \$1,875,000.00 and Defendant's share of payroll taxes by transmitting funds to the Settlement Administrator within sixty (60) days after the Effective Date.
5. Distribution: Within fourteen (14) days after funding, the Settlement Administrator shall distribute: (a) Individual Class Payments to Participating Class Members; (b) Individual PAGA Payments to Aggrieved Employees; (c) the LWDA PAGA Payment of \$30,000.00 to the California Labor and Workforce Development Agency; (d) the Class Counsel Fees Payment of \$624,999.99, except that 5% shall be withheld pending a compliance hearing; (e) the Class Counsel Litigation Expenses Payment of \$35,000.00; (f) the Class Representative Service

Payment of \$9,000.00; and (g) the Administration Expenses Payment of \$15,950.00. Disbursement to Class Counsel and the Class Representative shall not precede disbursement to Class Members.

6. Attorneys' Fees and Costs: Class Counsel is awarded attorneys' fees in the amount of \$624,999.99 and litigation costs in the amount of \$35,000.00, to be paid from the Gross Settlement Amount, except that 5% of the fees shall be withheld pending the compliance hearing.
7. Service Payment: Plaintiff Yekaterina Ramirez is awarded a Class Representative Service Payment of \$9,000.00, in addition to any Individual Class Payment and Individual PAGA Payment she receives as a Participating Class Member.
8. Administration Expenses: Apex Class Action, LLC is awarded \$15,950.00 for settlement administration services.
9. PAGA Allocation: The Court approves the PAGA Penalty allocation of \$40,000.00, with \$30,000.00 (75%) to the LWDA and \$10,000.00 (25%) to Aggrieved Employees as Individual PAGA Payments.
10. Tax Treatment: Individual Class Payments shall be allocated 10% to wages (W-2) and 90% to non-wage amounts (Form 1099).
11. *Cy Pres*: Uncashed checks remaining after 180 days shall be voided and remitted to Legal Aid Foundation of Los Angeles as *Cy Pres* Recipient pursuant to Code of Civil Procedure section 384, subdivision (b).
12. Release: The releases set forth in the Settlement Agreement are approved and shall be binding upon Participating Class Members and Aggrieved Employees upon the Effective Date.
13. Escalator: The escalator clause has not been triggered. If triggered, the Gross Settlement Amount shall increase proportionally or the Class Period shall end as provided in the Settlement Agreement.
14. No Admission: The settlement and this Order constitute neither an admission by Defendant of any fault, wrongdoing, or liability, nor a finding by the Court of the validity of any allegations.
15. PAGA Submission: Class Counsel shall submit this Order to the Labor and Workforce Development Agency within the time required by Labor Code section 2699.
16. Retention of Jurisdiction: This Court retains jurisdiction over the Parties and the subject matter of this action for purposes of enforcing the settlement and resolving any disputes arising thereunder.
17. Judgment: Final Judgment is entered in favor of Defendant and against Plaintiff and the Class with respect to all claims released by the Settlement Agreement.
18. Further Handling. Class Counsel are directed to prepare an order reflecting this tentative ruling and the other findings in the previously submitted proposed order, attaching a copy of this ruling.
19. Class counsel is ordered to schedule a compliance hearing with the clerk of the court no later than one year from the date of entry of this order, and is ordered to submit a compliance statement in the form of a declaration of distributions by the Administrator at least ten (10) court days before the compliance hearing date.
20. The Administrator is ordered to withhold 5% of the attorney's fees pending satisfactory compliance as found by the Court at or before the compliance hearing.

13. 9:00 AM CASE NUMBER: C24-00142

CASE NAME: XIOMARA SANCHEZ VS. CHANCELIGHT, INC.

***HEARING ON MOTION IN RE: PRELIMINARY APPROVAL OF SETTLEMENT AND PROVISIONAL CERTIFICATION OF SETTLEMENT CLASS**

FILED BY: XIOMARA SANCHEZ

TENTATIVE RULING:

Summary

Plaintiff Xiomara Sanchez ("Plaintiff"), individually, and on behalf of herself, filed this Motion for Preliminary Approval of the Class Action against Defendant Chancelight, Inc and Spectrum Center, Inc. (collectively, "Defendant"). The Motion is approved as set forth herein. No appearance is required at the hearing on September 16, 2026.

Background

This wage and hour class action is brought by Plaintiff against Defendants ChanceLight, Inc. and Spectrum Center Inc. on behalf of approximately 919 current and former non-exempt Instructional Aides who worked in California during the Class Period from April 27, 2017, through October 31, 2021. Plaintiff alleges systemic violations of California Labor Code provisions regarding meal periods, rest periods, overtime compensation, wage statements, and timely payment of wages upon separation of employment, as well as unfair business practices under Business and Professions Code section 17200.

The parties have agreed to a non-reversionary settlement totaling \$825,000 (the "Maximum Settlement Amount" or "Gross Settlement Amount"), which will be allocated as follows:

- (1) up to \$275,000 (one-third of the Gross Settlement Amount) in attorneys' fees to Class Counsel;
- (2) up to \$22,642.51 in litigation costs;
- (3) up to \$25,000 in settlement administration expenses (estimated at \$11,450 by ILYM Group, Inc., the proposed Settlement Administrator);
- (4) a Service Enhancement award of up to \$10,000 to Named Plaintiff Xiomara Sanchez; and
- (5) the remaining Net Settlement Amount (approximately \$505,907.49) to be distributed *pro rata* to Participating Class Members based on Covered Class Workweeks worked during the Class Period, with an estimated average recovery of \$560 per class member.

The settlement provides for a 50/50 tax allocation whereby fifty percent (50%) of each class member's Individual Settlement Award shall be treated as wages (reported on Form W-2 with appropriate withholdings) and fifty percent (50%) shall be treated as non-wage payments for alleged unpaid penalties and interest (reported on Form 1099). Any settlement checks that remain uncashed or are returned as undeliverable after the distribution period shall be escheated to the Controller of the State of California pursuant to the Unclaimed Property Law (Civil Code §§ 1500 et seq.) and Code of Civil Procedure section 384.

The Settlement Administrator shall mail the Class Notice to all identifiable Class Members within thirty (30) business days after Defendants provide the class data, which shall occur within thirty (30)

calendar days of preliminary approval. The Notice will explain the settlement terms, the right to opt out or object, the pro rata distribution methodology, the proposed attorneys' fees and service enhancement, and the date of the Final Approval Hearing. Class Members shall have forty-five (45) days from the mailing of the Notice to request exclusion or file objections.

Participating Class Members will release Defendants and their related entities from all claims that could have been asserted based on the facts alleged in the operative complaint, including claims for meal and rest period violations, unpaid straight-time and overtime wages, wage statement violations, waiting time penalties, and unfair business practices during the Class Period. The release does not extend to claims for vested benefits, unemployment benefits, disability benefits, social security benefits, or workers' compensation benefits.

The settlement was achieved through arm's-length negotiations following two mediation sessions with Lisa Klerman, Esq., the first on September 20, 2024, and the second on August 26, 2025, after extensive informal discovery regarding Defendants' financial condition and class damages. Defendants raised affirmative defenses and financial distress arguments, while Plaintiff faced risks regarding class certification and the substantial burdens of proving damages and Defendants' willfulness. The settlement represents a fair compromise, providing immediate monetary recovery to the class while avoiding the uncertainty, expense, and delay of continued litigation.

Analysis

The primary determination is whether the proposed settlement is "fair, reasonable, and adequate" under *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801. The factors include "the strength of plaintiffs' case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction ... to the proposed settlement." (See also, *Amaro v. Anaheim Arena Management, LLC* (2021) 69 Cal.App.5th 521)

California law provides guidance concerning judicial approval of class action settlements. First, public policy favors settlement (*Neary v. Regents of Univ. of Cal.* (1992) 3 Cal.4th 273), but the court must not approve an agreement contrary to law or public policy (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127). Moreover, "[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter." (*Cal. State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) Consequently, courts have noted that *Neary* does not apply where public rights are implicated, because "[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutary purpose." (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

Attorneys' Fees

The requested attorneys' fees, \$275,000, which is of one-third of the common fund are reasonable under the common fund doctrine and consistent with *Staton v. Boeing Co.* (9th Cir. 2003) 327 F.3d 938. Class Counsel has expended over 200 hours with a lodestar exceeding \$180,000, and the requested fees align with the substantial benefits obtained and the risks undertaken in this complex wage and hour litigation.

Even under the common fund theory, however, the fee award should be reviewed through a lodestar

cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the lodestar cross-check as a method to determine whether the percentage allocated is reasonable. The Court stated: "If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment." (*Id.* at p. 505.) Following typical practice, however, the Court will not consider the fee award at this preliminary approval stage, but reserves review for final approval.

Similarly, litigation costs in the amount of \$22,642.51 and the requested representative payment of \$10,000 to Plaintiff is fair and reasonable given her substantial time commitment (over 100 hours) and the risks faced as the class representative

Ruling

1. The settlement is sufficiently fair, reasonable, and adequate to justify *preliminary* approval. The motion is **granted**.
2. Counsel are directed to prepare an order reflecting this ruling, the other findings in the previously submitted proposed order, attaching a copy of this ruling.
3. Counsel are ordered to obtain a hearing date for the motion for final approval from the Department clerk. Other dates in the scheduled notice process should track as appropriate to the hearing date. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs' counsel are to submit a compliance statement one week before the compliance hearing date, which shall include the matters necessary to comply with Code of Civil Procedure section 384(b).
4. Notwithstanding any contrary provision in the settlement agreement, 5% of the attorney's fees are to be withheld by the administrator until released by the Court after review of the compliance statement.
5. The Court may issue a release through an unreported minute order without a hearing on the compliance statement.
6. No appearance is required at the hearing on September 16, 2026.

14. 9:00 AM CASE NUMBER: C24-02813
CASE NAME: ANITA HERNANDEZ VS. GOLDEN GATE BELL LLC
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: GOLDEN GATE BELL LLC
TENTATIVE RULING:

The motions are **continued** to September 30, 2026 at 9:00 a.m. in Department 16.

Defendant Golden Gate Bell, LLC moves to compel arbitration in each of two related cases brought by Plaintiff Anita Hernandez. In a class action filed on October 18, 2024 (C24-02813), Defendant moves to compel arbitration of Plaintiff's individual Labor Code claims and to dismiss the class claims. In a PAGA action filed on December 20, 2024 (C24-03464), Defendant moves to compel arbitration of Plaintiff's individual claims for civil penalties under the PAGA and to stay non-individual claims pending the outcome of the arbitration.

The Court previously continued these motions to September 16, 2026 to permit supplemental briefing to address new evidence submitted with Golden Gate Bell's reply. Although Defendant's supplemental brief references an opposition from Plaintiff, none appears to have been filed. Plaintiff's counsel shall file a copy of the supplemental brief no later than September 17, 2026.

The parties must be prepared to proceed with an evidentiary hearing on September 30, 2026 at 10:30 a.m., at which counsel may examine the witnesses whose declarations were submitted in support of or in opposition to the motions. Counsel and their witnesses may appear by Zoom. The Court will allot 20 minutes total for the hearing. The Court reserves the right to determine, upon reviewing the brief, whether an evidentiary hearing is necessary. The parties are directed to check the published tentative ruling for the September 30, 2026 9:00 a.m. law and motion calendar for further instructions regarding the evidentiary hearing.

15. 9:00 AM CASE NUMBER: C24-03464
CASE NAME: ANITA HERNANDEZ VS. GOLDEN GATE BELL LLC
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: GOLDEN GATE BELL LLC
TENTATIVE RULING:

See Line 14, above.

16. 9:00 AM CASE NUMBER: C25-00268
CASE NAME: DAVID SISNEROS VS. UNITED PARCEL SERVICE, INC.
***HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS**
FILED BY: UNITED PARCEL SERVICE, INC.
TENTATIVE RULING:

This hearing is continued, sua sponte, to October 21, 2026 at 9:00 a.m. No appearance is required on September 16, 2026.

17. 9:00 AM CASE NUMBER: C25-00305
CASE NAME: CORAL MICHEL VS. CITY OF MARTINEZ
HEARING ON SUMMARY MOTION FILED BY DEFENDANT CITY OF MARTINEZ
FILED BY:
TENTATIVE RULING:

Before the Court is Defendant City of Martinez ("Defendant")'s motion for summary judgment or in the alternative summary adjudication. The motion relates to Plaintiff Coral Michel ("Plaintiff" of "Michel")'s Complaint for premises liability.

Defendant moves for summary judgment on the grounds that Plaintiff cannot prove that the City of Martinez created or had actual or constructive notice of the alleged condition.

For the following reasons, Defendant's motion for summary judgment is **denied**.

Legal Standard

Code of Civil Procedure ("CCP") §§ 437c(o)(1) and 437c(p)(2) provide the relevant legal standard for deciding the Motion. Section 437c(o)(1) provides, in relevant part:

A cause of action has no merit if one or more of the elements of the cause of action cannot be separately established, even if that element is separately pleaded.

Section 437c(p)(2) provides, in relevant part:

A defendant or cross-defendant has met his or her burden of showing that a cause of action has no merit if that party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to that cause of action. Once the defendant or cross-defendant has met that burden, the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The plaintiff or cross-complainant shall not rely upon the mere allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to that cause of action or a defense thereto.

The party moving for summary judgment has the burden of persuasion to show there is no triable issue of material fact and thus it is entitled to judgment as a matter of law. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) Only if the moving party successfully meets this burden does the burden shift to the opposing party to make its own prima facie showing of the existence of a triable issue of material fact. (*Ibid.*; see also *Chern v. Bank of America* (1976) 15 Cal.3d 866, 873.) The scope of the defendant's initial burden is defined by the pleadings. (See *580 Folsom Assocs. v. Prometheus Dev. Co.* (1990) 223 Cal.App.3d 1, 18.)

Factual Background

This case arises out of an accident while Plaintiff was riding an electric scooter in the gutter portion of the road at or near Arnold Drive and Gloucester Lane in Martinez.

Plaintiff's premises liability claim alleges:

Defendants negligently and/or recklessly, maintained, managed, operated, controlled and safeguarded the premises at or near Arnold Dr & Gloucester Ln, Martinez, CA 94553, such that an uneven, broken, deteriorating and/or raised portion of the pavement and/or roadway was allowed to exist and be left in disrepair. Defendants failed to barricade the area and/or to warn of the dangerous condition, rendering the area on said premises dangerous and resulting in serious bodily injury to the Plaintiff in the following manner: Plaintiff was operating an electrical scooter on Arnold Dr near Gloucester Ln when suddenly and without warning, the wheels on said scooter struck an uneven, broken, deteriorating and/or raised portion of the pavement and/or roadway. This caused Plaintiff to fall and sustain serious injuries and damages. The actions of the Defendants and/or its employees were below the standard of care and was the cause of Plaintiff's injuries.

The Complaint further alleges that Plaintiff's claim is brought pursuant to Government Code section 835 and 815.2.

Analysis

Legal Standard on Dangerous Condition of Public Property

As a public entity, the City of Martinez may be liable for injuries caused by a dangerous condition of its property.

“Except as provided by statute, a public entity is liable for injury caused by. dangerous condition of its property if the plaintiff establishes that the property was in a dangerous condition at the time of the injury, that the injury was proximately caused by the dangerous condition, that the dangerous condition created a reasonably foreseeable risk of the kind of injury which was incurred, and that either: (a) A negligent or wrongful act or omission of an employee of the public entity within the scope of his employment created the dangerous condition; or (b) The public entity had actual or constructive notice of the dangerous condition under Section 835.2 a sufficient time prior to the injury to have taken measures to protect against the dangerous condition.” (Gov’t Code § 835.) “A public entity had actual notice of a dangerous condition ... if it had actual knowledge of the existence of the condition and knew or should have known of its dangerous character.” (Gov’t Code § 835.2(a).) “A public entity had constructive notice of a dangerous condition ... only if the plaintiff establishes that the condition had existed for such a period of time and was of such an obvious nature that the public entity, in the exercise of due care, should have discovered the condition and its dangerous character.” (Gov’t Code § 835.2(b).) “Dangerous condition” means a condition of property that creates a substantial (as distinguished from. minor, trivial or insignificant) risk of injury when such property or adjacent property is used with due care in a manner in which it is reasonably foreseeable that it will be used. (Gov’t Code § 830(a).)

“[A] claim alleging a dangerous condition may not rely on generalized allegations [] but must specify in what manner the condition constituted. dangerous condition.” (*Cerna v. City of Oakland* (2008) 161 Cal. App. 4th 1340, 1347.) “A plaintiff’s allegations, and ultimately the evidence, must establish. physical deficiency in the property itself.” (*Id.*) A dangerous condition exists when public property “is physically damaged, deteriorated, or defective in such. way as to foreseeably endanger those using the property itself,” or possesses physical characteristics in its design, location, features or relationship to its surroundings that endanger users.” (*Id.* at 1347-48.)

Notice

Section 835 “provides for direct liability on the part of public entities for injuries caused by maintaining dangerous conditions on their property when the condition ‘created a reasonably foreseeable risk of the kind of injury which was incurred’ and *either* an employee’s negligence or wrongful act or omission caused the dangerous condition *or* the entity was on ‘actual or constructive notice’ of the condition in time to have taken preventive measures.” (*Hampton v. County of San Diego* (2015) 62 Cal.4th 340, 347-348 [italics added].)

In its motion, the City of Martinez argues that it did not have actual or constructive notice of the allegedly dangerous condition before the incident, and that “Plaintiff cannot establish that the City created the Dangerous Condition.” (Motion at § III(B)(2).)

In support of its motion for summary judgment, the Defendant submitted the declaration of the City of Martinez’s Public Works Maintenance Superintendent, Joe Becker. Therein, he testified that he “investigated the CITY’s database and relevant records and found that they contain no requests or complaints concerning the roadway at or near Arnold Drive and Gloucester Lane, Martinez, CA 94553 prior to March 9, 2024, the date of Plaintiff’s alleged injury.” (Becker Decl. at ¶ 4.)

Compared to the testimony adduced in *Sargenti v. City of Long Beach* (2026) 120 Cal.App.5th 702, the Court finds that it is sufficient to meet the Defendant’s initial burden with respect to notice. In that case, the City of Long Beach submitted the declaration of its superintendent of street maintenance for the Long Beach Public Service Bureau, Public Works Department. (*Id.* at p. 711.) The declaration in that case described the City’s procedures for “receiving or obtaining notifications or any information

as it relates to alleged dangerous conditions on the City sidewalks or streets,” which included complaints or requests for service received from phone calls and the City’s website and web-based application and observations by City Public Works crewmembers in the field. (*Id.*)

That said, the Court also notes that the declaration in *Sargenti* also stated that he “asphalt patch in question also differs in the manner in which it was constructed from how the City Public Works generally performs driveway apron asphalt patching” and that, because “the subject asphalt patch is on a driveway that provides ingress and egress to the parking lot” of a convention center managed and operated by a third party, “the City would have no reason to perform a subject asphalt patch.” (*Id.*) Here, the Defendant has not adduced any evidence to show that, as a matter of law, its employees or agents were not responsible for creating the street condition at or near Arnold Drive and Gloucester Lane.

The Defendant argues in reply that it has met its burden that it did not create the condition “by showing that Plaintiff has no evidence to prove a required fact.” (Reply at 5:3-4.) This argument is without reference to the Separate Statement, however, which does not include a single undisputed material fact regarding creation of the street condition at issue.

Under well-established summary judgment standards, a plaintiff’s burden to demonstrate—with evidence—a triable issue of material fact is only triggered once the moving party shows “one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action.” (Code Civ. Proc., § 437c, subd. (p)(2).) Here, the City of Martinez has produced no evidence to negate plaintiff’s theory that its agents or employees created the dangerous street condition.

Furthermore, the Court also notes that the City of Martinez filed a Cross-Complaint against MCK Services, Inc. for (1) equitable indemnity, (2) contractual indemnification, (3) contribution, (4) comparative negligence, and (5) declaratory relief. That Cross-Complaint alleges that “on June 13, 2023, [the City of Martinez] entered into a Construction Project Agreement with MCK Services, Inc. for a Pavement Rehabilitation Project Agreement.” (Cross-Complaint at ¶ 16.) The Cross-Complaint further alleges that “[t]he plan includes pavement and striping plans for the street and corner Plaintiff alleges the incident occurred (Gloucester Lane and Arnold Drive).” (*Id.* at ¶ 18.) There is a strong implication that the City’s agents are responsible for the paving of the area where Plaintiff’s accident occurred.

Because the Defendant has not negated all theories of liability alleged in Plaintiff’s complaint, summary judgment is inappropriate. (See, e.g., *Jameson v. Desta* (2013) 215 Cal.App.4th 1144, 1165 [summary adjudication reversed where the defendant failed to address theory of liability alleged in complaint]; *Lopez v. Superior Court* (1996) 45 Cal.App.4th 705, 717 [reversing summary judgment where the defendant did not show it was entitled to judgment with respect to all theories of liability].)

Objections to Evidence

The Court need only rule on those objections to evidence that were material to the disposition of the MSJ. (See CCP § 437c(q).)

Plaintiffs’ Objections to Defendant’s Evidence:

Objection No. 1: Overruled.

Objection No. 2: Overruled.

Objection No. 3: Overruled.

18. 9:00 AM CASE NUMBER: C25-00779

CASE NAME: PAWAN GARG VS. BMW OF NORTH AMERICA, LLC, A DELAWARE LIMITED LIABILITY COMPANY

*HEARING ON MOTION FOR DISCOVERY COMPEL COMPLIANCE WITH 02/21/26 ORDER
FILED BY: BMW OF NORTH AMERICA, LLC, A DELAWARE LIMITED LIABILITY COMPANY

TENTATIVE RULING:

Introduction

Defendant BMW of North America Inc.'s ("Defendant" or "BMW") Motion to Compel Compliance with the Court's Prior Order and for Sanctions against Plaintiff Pawan K. Greg ("Plaintiff") is **granted**.

Background

On February 24, 2026, the Court issued an Order directing Plaintiff Pawan K. Garg ("Plaintiff") to appear for her deposition no later than thirty (30) days from the date of that order. The Court specified that the deposition was to commence no earlier than 9:00 a.m., was to last no more than six hours per day, and was to continue from day to day (excluding Court holidays and weekends) until completed. The February 24, 2026 Order further warned that failure to comply could result in terminating sanctions and contempt proceedings, and ordered Plaintiff and her counsel to pay monetary sanctions in the amount of \$2,280.00 within ten (10) days of the hearing date.

Plaintiff failed to appear for her deposition as ordered and has failed to pay the \$2,280.00 sanctions. Defendant was consequently compelled to file the instant motion to compel compliance, seeking enforcement of the Court's prior order and additional sanctions for Plaintiff's continued noncompliance.

Analysis

A. Legal Standards Governing Discovery and Sanctions

Civil discovery in California is governed by the Civil Discovery Act. (See Code Civ. Proc., §§ 2016.010–2036.050.) The Act affords litigants broad rights to obtain discovery regarding any non-privileged matter that is relevant to the subject matter of the pending action or to the determination of any motion made in that action, provided the matter is either admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. (Code Civ. Proc., § 2017.010; *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402.)

Conversely, the Court is empowered to limit the scope of discovery where the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. (Code Civ. Proc., § 2017.020, subd. (a).) In exercising its discretion regarding discovery motions, the trial court relies upon the Civil Discovery Act and the legislative intent to avoid surprise and prevent the fabrication of evidence at trial. (*Glenfed Dev. Corp. v. Superior Court* (1997) 53 Cal.App.4th 1113, 1119.)

The fundamental principles of eliminating gamesmanship in California discovery practice have been established for over sixty years. The California Supreme Court's decision in *Greyhound Corp. v. Superior Court* (1961) 56 Cal.2d 355, 376, remains controlling: the Legislature intended to remove the "game" element from trial preparation while preserving the adversary nature of the trial itself. A principal purpose of discovery is to eliminate "the sporting theory of litigation—namely, surprise at the trial." (*Chronicle Pub. Co. v. Superior Court* (1960) 54 Cal.2d 548, 561.) As the *Chronicle* court

noted, citing *United States v. Procter & Gamble Co.* (1958) 356 U.S. 677, 682, discovery serves to make a trial "less a game of blind man's buff and more a fair contest with the basic issues and facts disclosed to the fullest practicable extent." *Chronicle Pub. Co. v. Superior Court*, *supra*, 54 Cal.2d at p. 572.)

B. Plaintiff's Continued Misuse of the Discovery Process

Code of Civil Procedure section 2023.010, subdivisions (d), (e), (f), (h), and (i), identifies multiple forms of discovery misuse, including: failing to respond or submit to an authorized method of discovery; making unmeritorious objections to discovery without substantial justification; making evasive responses to discovery; and unsuccessfully making or opposing motions to compel or limit discovery without substantial justification. Section 2023.030, subdivision (a), provides that the Court may impose monetary sanctions ordering that any party engaging in such misuse, or the attorney advising that conduct, or both, pay the reasonable expenses, including attorney's fees, incurred by any party as a result of that conduct.

Here, Plaintiff has failed to appear for her deposition despite the Court's clear February 24, 2026 Order requiring her attendance. The declaration submitted by Plaintiff's counsel offers no substantial justification for this failure. That the handling attorney no longer works for Plaintiff's counsel's firm does not excuse the noncompliance; the firm remains responsible for ensuring compliance with Court orders, and numerous other attorneys remain available to Plaintiff's counsel of record to ensure adherence to discovery obligations. This neglect by Plaintiff's counsel is inexcusable.

A plaintiff cannot simultaneously maintain an action and refuse to participate in fundamental discovery. Plaintiff's failure to appear constitutes a misuse of the discovery process within the meaning of Code of Civil Procedure section 2023.010, subdivision (d). Accordingly, Defendant is entitled to the sanctions originally ordered on February 24, 2026 (\$2,280.00), as well as additional sanctions incurred in prosecuting this motion to compel compliance (\$1,660.00).

The Court finds that Plaintiff's refusal to participate in discovery constitutes a misuse of the discovery process. The imposition of sanctions is necessary both to compensate Defendant for the expenses incurred due to Plaintiff's noncompliance and to deter future violations. The Court expects strict compliance with this Order.

Conclusion

1. Defendant's Motion Granted: Defendant BMW of North America Inc.'s Motion to Compel Compliance with the Court's Prior Order and for Sanctions is **granted** in its entirety.
2. Deposition Compliance: Plaintiff Pawan K. Garg shall appear for her deposition at a date and time noticed by Defendant no later than thirty (30) calendar days from the date of this Order. The deposition shall commence no earlier than 9:00 a.m. each day, shall last no more than six hours per day, and shall continue from day to day (excluding Court holidays and weekends) until completed. The parties may stipulate to extend these deadlines.
3. Monetary Sanctions: Plaintiff Pawan K. Garg and her counsel of record, jointly and severally, shall pay total monetary sanctions in the amount of \$3,940.00, allocated as follows: (a) \$2,280.00 pursuant to the Court's February 24, 2026 Order; and (b) \$1,660.00 for the costs incurred in bringing this motion.
4. These sanctions shall be paid to Defendant BMW of North America Inc. no later than ten (10) calendar days from the date of notice of entry of this Order by either Plaintiff or her Counsel,

as they are imposed on both.

5. Second Admonition of Terminating Sanctions: Plaintiff and her counsel are hereby notified, again, that failure to comply with this Order, including failure to appear for deposition as scheduled or failure to timely pay the sanctions imposed, may result in the imposition of terminating sanctions pursuant to Code of Civil Procedure section 2023.030, subdivision (b), and may subject Plaintiff and/or her counsel to contempt proceedings.
6. Preparation of Order: Defendant BMW of North America Inc. shall prepare and electronically file a proposed order conforming to this ruling, attaching a copy of this ruling, no later than five (5) court days from the date of this hearing.

19. 9:00 AM CASE NUMBER: C25-00988
CASE NAME: BRITTANY HOPPER VS. CITY OF ANTIOCH
HEARING ON SUMMARY MOTION FILED BY DEFENDANT CITY OF ANTIOCH
FILED BY: CITY OF ANTIOCH
TENTATIVE RULING:

Defendant the City of Antioch's motion for summary judgment and summary adjudication is **denied**.

Plaintiff Brittany Hopper was injured at the Antioch Water Park on May 27, 2024, when she slid down the crystal slide into the pool and her right knee hit a rock at the bottom of the pool. (FAC ¶¶ 5, 12, 13.) Plaintiff brought one cause of action for dangerous condition of public property.

Antioch moves for summary judgment or in the alternative, summary adjudication as to the following issues: (1) there is no dangerous condition, (2) the City did not have actual or constructive notice and (3) no causation. Although Antioch is seeking summary adjudication in the alternative, if the Court grants summary adjudication on any one of these issues it would result in granting summary judgment. Thus, the analysis of the three summary adjudication issues is the same as the one for summary judgment.

Facts

Defendant's motion is based on the deposition of Plaintiff and the declaration of Bree Pires, the City's Recreation Supervisor from January 2021 to 2026.

The undisputed facts show that prior to the incident, Plaintiff had ridden on the crystal water slide about 10 to 20 times and never experienced any issues. (Undisputed Facts 1-3.) Plaintiff was unaware of anyone being injured on the slide and had permitted her daughter to use the slide, thinking it was safe. (Undisputed Facts 4-6.) Plaintiff is not aware of anyone employed by the water park being on notice of any objects in the pool before the incident. (Undisputed Fact 25.)

On May 27, 2024, Plaintiff arrived at the water park and went directly to the slide. (Undisputed Fact 7.) Plaintiff had been at the park for no more than 15 minutes. (Undisputed Fact 8.) Plaintiff exited the slide and her knees automatically hit the ground. (Undisputed Fact 9.) Plaintiff went straight down and landed in the splash pool differently than she had on prior rides on the slide. (Undisputed Fact 11.) She does not know why she entered the pool differently that day. (Undisputed Fact 13.) Plaintiff had never landed in the splash pool in that manner before. (Undisputed Facts 10,

12.)

When Plaintiff landed in the pool, her right knee was the first part of her body to make contact with the bottom of the splash pool. (Undisputed Fact 14.) Plaintiff testified that her knee made contact with a rock because the contact felt like a rock. (Undisputed Fact 17.) Plaintiff never observed a rock in the splash pool. (Undisputed Fact 14.) She does not know what the object was, she does not know what it looked like, does not know the size of the object and does not know anyone who saw the object. (Undisputed Facts 16, 18, 19, 20.)

Plaintiff does not know how long the object was present in the splash pool. (Fact 22.) She does not know how the object came to be in the pool. (Undisputed Fact 23.) She did not observe any employee removing any object from the splash pool. (Undisputed Fact 24.) Plaintiff did not look for an object in the pool after the incident, did not see any object in the water and did not point out any object in the water to a lifeguard or anyone else. (Undisputed Facts 26, 27, 28.)

Plaintiff told the lifeguard that her knee came into contact with something. (Undisputed Fact 33.) Plaintiff did not tell her sister that she had contacted a rock or object at the bottom of the pool on the date of the incident. (Undisputed Fact 34.)

The following facts are based upon Pires' declaration and are objected to by Plaintiff: on the date of the incident, the pool area where the incident occurred was cleaned and vacuumed, and staff verified that there was no debris or foreign object visible at the bottom of the pool. (Fact 29, 30.) Recreation Supervisor Pires was not aware of any prior reports of similar incidents or complaints involving debris, foreign objects or hazards in the pool or slide area during her tenure with the city, starting in January 2021. (Fact 31, 32.)

Dangerous Condition

"A 'dangerous condition,' as defined in section 830, is 'a condition of property that creates a substantial . . . risk of injury when such property or adjacent property is used with due care' in a 'reasonably foreseeable' manner. ([Gov. Code] § 830, subd. (a).)" (*Bonanno v. Central Contra Costa Transit Authority* (2003) 30 Cal.4th 139, 147.)

Defendant argues that there is no dangerous condition here. As Defendant points out, Plaintiff never actually saw a rock and instead her testimony shows that her knee connected with an unidentified object, but no one saw the object.

Defendant presents no evidence outside of Plaintiff's declaration addressing whether there was a dangerous condition. The City did not include factually devoid discovery responses nor other testimony or declarations from City employees or third parties on what the object was. Therefore, the Court finds that Defendant has not shown that there was not a rock in the bottom of the pool. Further, the Court also finds the existence of a rock at the bottom of a splash pool could constitute a dangerous condition and therefore the City has not met its initial burden on showing the lack of a dangerous condition.

Notice

A claim for dangerous condition of public property requires actual or constructive notice or a

showing that the public entity created the condition. The allegations here do not allege that the City put the rock in the pool. Thus, in order to prevail on a motion for summary judgment, a defendant must show a lack of both actual and constructive notice.

Defendant's evidence shows no prior complaints and incidents for at least three years prior to Plaintiff's injury. (Pires dec. ¶¶6-7.) This is sufficient to show a lack of actual notice.

As to constructive notice, "[t]he primary and indispensable element of constructive notice is a showing that the obvious condition existed a sufficient period of time before the accident." (*Strongman v. County of Kern* (1967) 255 Cal.App.2d 308, 313.) A public entity can sometimes defeat constructive notice by showing that it had a reasonable inspection system (Government Code section 835.2), but the City did not make that showing here.

Defendant argues that Plaintiff testified that she does not know how long the object was there and could not identify the object. From this testimony, Defendant argues that Plaintiff has no evidence regarding the duration of the alleged condition and thus cannot establish constructive notice. Defendant did not include any factually devoid discovery responses, nor other evidence showing how much time elapsed between when the pool was cleaned and when Plaintiff was injured.

Defendant also points to evidence that City staff cleaned and vacuumed the pool and staff confirmed that there were no foreign objects in the pool before the park opened that day. Plaintiff testified that she was injured within 15 minutes of coming to the water park and although not in the separate statement, she testified that she arrived around 1:30pm. (Plaintiff depo. 12:4-7.) There is no evidence, however, as to when the pool opened that day and thus, there is no evidence on how long the pool was open before Plaintiff arrived.

The Court finds that Defendant cannot meet its burden of showing a lack of constructive notice on the evidence presented in this motion.

Causation

Defendant argues that there is a lack of causation here because Plaintiff cannot identify the object that struck her and she testified that she entered the splash pool differently than she usually did. Defendant cites no case law supporting these arguments. Further, there is no evidence that Plaintiff used the water slide incorrectly. She testified that she landed on her knee and it struck a rock and then she became injured. Defendant has not shown how this evidence is insufficient to show causation and the Court finds that Defendant has not met its initial burden on causation.

Since Defendant has not met its initial burden on dangerous condition, notice or causation the motion for summary judgment and adjudication must be denied.

Opposition

Although the Court finds that Defendant has not met its initial burden on this motion, the Court provides its analysis on Plaintiff's opposition to find a complete analysis of this motion.

In opposing this motion, Plaintiff does not include any evidence. Plaintiff also does not dispute facts 1 to 28 and 33 to 34. She disputes facts 29 to 32 by disputing the evidence based upon

evidentiary grounds. Although not in the proper form, the Court construes Plaintiff's dispute as to facts 29-32 as objections to evidence to paragraphs 4-7 of the Pires declaration.

The Court sustains the objections to paragraphs 4 and 5 as hearsay. Pires does not explain what information or records she reviewed nor how those were kept in the ordinary course of business. As such, the evidence does not meet the business records exception and without it the testimony is hearsay. The Court overrules objections to paragraphs 6 and 7 because the declarant is a recreation supervisor for the City and her lack of knowledge provides sufficient evidence to show lack of actual notice.

Plaintiff also argues that the depth of the water in the pool was too shallow. However, the dangerous condition alleged in the FAC is a rock, not a shallow pool. (FAC ¶¶13, 17.) Plaintiff cannot raise new issues in opposition that were not alleged in the complaint. (*Laabs v. City of Victorville* (2008) 163 Cal.App.4th 1242, 1257 ("new factual issues presented in opposition to a motion for summary judgment should be considered if the controlling pleading, construed broadly, encompasses them."))

Plaintiff also argues that *res ipsa loquitur* applies here. "[T]he doctrine of *res ipsa loquitur* is defined by statute as 'a presumption affecting the burden of producing evidence.' (Evid. Code, § 646, subd. (b).) The presumption arises when the evidence satisfies three conditions: " '(1) the accident must be of a kind which ordinarily does not occur in the absence of someone's negligence; (2) it must be caused by an agency or instrumentality within the exclusive control of the defendant; (3) it must not have been due to any voluntary action or contribution on the part of the plaintiff.' "[Citation.]" (*Brown v. Poway Unified School Dist.* (1993) 4 Cal.4th 820, 825-826.)

However, this doctrine does not apply to prove the elements of a dangerous condition of public property. (*Id.* at 838.) In *Brown*, the Court noted that *res ipsa* might be used to show that a particular condition was dangerous and that a particular act or omission was negligent. (*Id.* at 832.) But it cannot be used to show actual or constructive notice. (*Id.* at 837.)

20. 9:00 AM CASE NUMBER: C25-01807
CASE NAME: ANTHONY MAPALO VS. ERIC MUHAMMAD
***HEARING ON MOTION IN RE: LEAVE TO FILE 1ST AMENDED COMPLAINT**
FILED BY: MAPALO, ANTHONY
TENTATIVE RULING:

Before the Court is Plaintiff Tony Mapolo ("Plaintiff")'s motion for leave to file First Amended Complaint. The motion is "conditionally opposed" by Defendant VIP Protective Services, Inc. and Defendant Eric Muhammad (collectively, "Defendants").

Plaintiff moves pursuant to Code of Civil Procedure section 473(a)(1) to convert this action from a class action and Private Attorneys General Act representative action to a single-plaintiff individual action, remove Dwayne Cash and John Halfacre as named plaintiffs, and remove the Eighth Cause of Action for Violation of the Private Attorneys General Act.

For the following reasons, Plaintiff's motion is **granted**. The First Amended Complaint is deemed filed as of September 16, 2026. Plaintiff is ordered to file a separate copy of the First Amended Complaint

by September 18, 2026.

Analysis

Defendants “acknowledge that leave to amend is appropriate here,” but ask the Court to condition leave on granting an order of costs in favor of Defendants in the amount of \$13,988.63 as well as dismissal of “the to be mooted Motion to Compel (and for sanctions).” (Opp. at 2:21-23.)

Defendants further argue that “one court recognized [attorney fees] may be awarded under Cal. Code Civ. Proc. CCP § § 128.5 and 128.7 based on improper litigation tactics, even where not expressly permitted under Cal. Code Civ. Proc. § 473.” (Opp. at 4:23-25 [citing *Amezcuca v. Sup.Ct. (Massage Envy Franchising, LLC)* (2026) 120 Cal. App. 5th 116, 119].) Defendants’ reliance on *Amezcuca* is puzzling.

In *Amezcuca*, the Fourth District Court of Appeal issued a writ of mandate and directed the trial court to **vacate** an order that granted plaintiff leave to amend the operative complaint, but only if she paid \$25,000 to defendant. The Court noted that “[a]lthough there are statutes in our code that permit a trial court to award attorney fees as sanctions for pretrial motion practice under many circumstances, **section 473 is not one of them.**” (*Amezcuca, supra*, at p. 119 [emphasis added].)

Specifically, the *Amezcuca* court stated: “The trial court erred when it conditioned leave to amend on the payment of Massage Envy’s attorney fees. Subject to narrow exceptions not relevant here, courts may not order the payment of attorney fees to an opposing party unless they do so pursuant to statutory authority or an agreement by the parties: ‘Except as attorney[] fees are *specifically* provided for by statute, the measure and mode of compensation of attorneys and counselors at law is left to the agreement, express or implied, of the parties.’ (§ 1021, italics added.)” (*Amezcuca, supra*, at p. 127.)

The *Amezcuca* court noted that while several major treatises on California law interpreted case law authority to hold that the provision in section 473, subdivision (a)(1), that allows leave to amend a pleading to be conditioned “‘on such terms as may be proper’” authorizes courts to condition leave on payment of opposing counsel’s attorney fees, the first of those cases (*Fuller v. Vista Del Arroyo Hotel* (1941) 42 Cal.App.2d 400, also cited by Defendants) makes no specific mention of attorney fees. With respect to the second case, *Williams v. Myer* (1907) 150 Cal. 714 (also cited by Defendants), the *Amezcuca* court concluded that “[t]o the extent *Williams* can be read more broadly, to allow leave to amend to be conditioned on payment of attorney fees whenever it appears that such terms ‘may be just,’ it is also no longer good law.” (*Amezcuca, supra*, at p. 130.) Specifically, that under *Bauguess* trial courts do not have inherent supervisory power to order payment of attorney fees as a sanction, and such orders must be founded on express statutory authority. (*Bauguess v. Paine* (1978) 22 Cal.3d 626, 639.) Section 473, subdivision (a), does not include a provision that specifically authorizes the award of attorney fees to an opposing party, conditionally or otherwise.

In light of this authority, the Court grants Plaintiff’s motion without conditions.

21. 9:00 AM CASE NUMBER: C25-03171
CASE NAME: JOSIAH HOLLOWAY VS. SHAHS OF SHIRAZ, INC.
*MOTION/PETITION TO COMPEL ARBITRATION
FILED BY: SHAHS OF SHIRAZ, INC.
TENTATIVE RULING:

Defendant's motion to compel arbitration is **granted**. **Parties shall submit their dispute to arbitration and the action is stayed pending completion of the arbitration or until further order of the Court.** The class claims are dismissed without prejudice and the PAGA cause of action is stayed pending the arbitration proceeding. A further case management conference to review the status of the arbitration is hereby set for 8:30 a.m. on March 30, 2027.

Background

Plaintiff Josiah Holloway was hired on March 18, 2022 as a Team Member for defendant, which is a franchisee of Burger King Corporation. He was an hourly-paid, non-exempt employee. As part of the onboarding process, plaintiff electronically signed an arbitration agreement. (Declaration of Amir Sahebalzamany in Support of Motion to Compel Arbitration, hereinafter "Sahebalzamany Decl.," Exhibit A.) He also signed physical copy of the same agreement on his first day of onboarding. (*Id.*, Exhibit B.)

On October 28, 2025 plaintiff filed this putative class action against defendant. Plaintiff's operative first amended complaint, filed on February 10, 2026, alleges eight wage and hour causes of action under the Labor Code, as well as a cause of action for violation of the Unfair Competition Law, Business & Professions Code section 17200 et seq., and a cause of action for Civil Penalties Under PAGA (Lab. Code § 2699, et seq.).

After attempting to stipulate with plaintiff, defendant filed this motion to compel arbitration on March 25, 2026. The motion is supported by a declaration from Amir Sahebalzamany, the Secretary for defendant, who attaches the arbitration agreement and provides information about the circumstances surrounding entry into that agreement.

Plaintiff filed an opposition to the motion conceding that his "personal wage and hour claims (stated in causes of action one through eight of the First Amended Complaint) can be compelled to arbitration." He also does not object to the dismissal of class claims without prejudice. However, he argues "the entire PAGA action should remain in state court and be contemporaneously litigated alongside the arbitration proceedings [of plaintiff's own individual wage claims]."

Defendant's reply avers that such contemporaneous litigation is not permitted.

Standard

"A petition to compel arbitration should be granted if the court determines that an agreement to arbitrate the controversy exists. (Code Civ. Proc., § 1281.2.) The moving parties bear the burden of proving the existence of the arbitration agreement by a preponderance of the evidence. (*Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413; *Alvarez v. Altamed Health Services Corp.* (2021) 60 Cal.App.5th 572, 580.) Once the existence of an arbitration agreement is established, the burden is on the party opposing arbitration to prove its defense. (*Alvarez, supra*, 60 Cal.App.5th at 580.) If a written arbitration agreement exists, it will be enforced unless there are grounds for its revocation. (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 125; Code Civ.

Proc. § 1281].)

Analysis

A. Existence of Agreement

A written agreement to submit to arbitration an existing controversy or a controversy thereafter arising is valid, enforceable and irrevocable, save upon such grounds as exist for the revocation of any contract. (Code Civ. Proc., § 1281.) The party seeking arbitration bears the burden of proving the existence of an arbitration agreement. (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC*, hereinafter “*Pinnacle*,” (2012) 55 Cal.4th 223, 236.) Here, defendant provided signed copies of the agreement, which plaintiff does not dispute. Existence of an arbitration agreement has been established. The only point of disagreement here concerns whether the “individual PAGA claim” is covered by that agreement.

B. Scope of Agreement to Arbitrate

The agreement provides that it is governed by the Federal Arbitration Act, 9 U.S.C. § 1 et seq. and evidences a transaction involving commerce. The agreement further provides that it applies to “any dispute arising out of or related to Employee's application and selection for employment, employment, and/or termination of employment with SHAHS OF SHIRAZ INC or one of its affiliates, subsidiaries or parent companies (“Company”).” The agreement binds both parties to arbitrate disputes with certain exceptions. It contains a paragraph at the bottom of the first page which states:

2. Limitations On How This Agreement Applies. **These claims are not covered under this Agreement:** (i) Workers' Compensation benefits, state disability insurance benefits or unemployment insurance benefits; however, this Agreement applies to discrimination or retaliation claims based upon seeking such benefits; (ii) disputes that an applicable federal statute expressly states cannot be arbitrated or subject to a pre-dispute arbitration agreement; and (iii) **representative actions for civil penalties filed under the California Private Attorney General Act (“PAGA”)** (*but to the extent permitted by applicable law, any claim by Employee on Employee's own behalf under PAGA to recover Employee's own unpaid wages must be arbitrated and is covered by this Agreement*).

(Sahebalzamany Decl., Exhibits A and B, bolding and italics added.)

Plaintiff contends that the above italicized language means that his own civil penalty claims should *not* be arbitrated and instead proceed simultaneously with the arbitration in this Court.

In reply, defendant contends that, read in context, the italicized language was simply a reference to plaintiff's individual claims, using the term “wages” loosely and covering the applicable meal and rest period premiums that might also underlie plaintiff's causes of action.

Defendant correctly argues that both the California Code of Civil Procedure § 1281.4, as well as the Federal Arbitration Act, require the Court to implement a stay of a PAGA claim in a case like the present, pursuant to recent Supreme Court authority and subsequent cases. (*Adolph v. Uber Technologies, Inc.* (2023) 14 Cal.5th 1104, 1123; see also *Leeper v. Shipt, Inc.* (2024) 107 Cal.App.5th 1001, 1013.) Because the outcome of the arbitration could be binding in any PAGA action with respect to plaintiff's standing to act as a PAGA representative, these cases have held that the trial court should stay any PAGA claim pending arbitration of arbitration involving the individual claims.

Accordingly, the motion must be granted.

22. 9:00 AM CASE NUMBER: C25-03352
CASE NAME: LUIS GOMEZ PASTRANA VS. DCS TRANSPORTATION
***HEARING ON MOTION IN RE: VENUE**
FILED BY:
TENTATIVE RULING:

Defendant Discount Courier Services, Inc.'s Motion to Transfer Venue to Orange County is **denied**.

Background

This is a putative class and representative action brought by Plaintiff Luis Gomez Pastrana against Defendant Discount Courier Services, Inc. alleging that Defendant misclassified Plaintiff, the putative Class, and Aggrieved Employees performing courier services in California as independent contractors. The operative pleading is the First Amended Complaint (FAC), which asserts nine causes of action: (1) failure to pay minimum wage; (2) failure to pay overtime compensation; (3) failure to provide meal periods; (4) failure to provide rest periods; (5) failure to indemnify necessary business expenses; (6) waiting time penalties; (7) failure to provide accurate itemized wage statements; (8) unlawful business practices under the UCL; and (9) civil penalties under the Private Attorneys General Act, Lab. Code, § 2698 et seq, (PAGA). The first through eighth causes of action are brought individually and on behalf of a putative class of non-exempt delivery drivers, and the ninth cause of action is brought in a representative capacity under PAGA.

Defendant moved to transfer venue to Orange County, or in the alternative to dismiss the action under Code of Civil Procedure section 410.30. In its moving papers, Defendant argued that Plaintiff had contractually agreed to litigate in Orange County, though it failed to attach the contract and relied solely on a statement in its CEO Omar K. Elkabbara's declaration that he was "aware that Luis Gomez Pastrana signed a written agreement requiring venue of this action in Orange County, California." Mr. Elkabbara further declared that Defendant's headquarters are located in Orange County and that the company conducts less than five percent of its business in Contra Costa County.

The motion was calendared for hearing on August 5, 2026. On July 29, 2026, Defendant filed a reply brief accompanied by a supplemental declaration of Mr. Elkabbara, which for the first time attached a copy of the contract containing the Orange County venue selection clause. Because new evidence is generally not permitted on reply without affording the opposing party a fair opportunity to respond, the Court continued the August 5 hearing to September 16, 2026, and gave Plaintiff the opportunity to file a supplemental brief. On September 2, 2026, Plaintiff filed a supplemental opposition and a supporting declaration of Plaintiff.

The contract produced by Defendant is an Independent Contractor Agreement (Agreement) entered into between Plaintiff and an entity called DCS Management, LLC, a Florida limited liability company, for the performance of package and courier delivery services. Under its terms, the contractor agrees to transport goods for customers, retaining the discretion to accept or decline individual delivery opportunities. The Agreement places the operational details and business expenses on the contractor. It also disclaims any employment relationship between defendant and the contractor and any subordinate drivers or helpers the contractor might hire. The Agreement's paragraph 24 contains the venue section clause, which states "[i]n any court litigation arising out of this agreement, venue is

in the Superior Court of the State of California, County of Orange."

Analysis

Venue Is Proper Under Code of Civil Procedure Section 395.5

In bringing a motion to transfer venue, a defendant bears the burden of demonstrating that the plaintiff's venue selection is not proper under any statutory ground. (*Fontaine v. Superior Court* (2009) 175 Cal.App.4th 830, 836.) The presumption is that the plaintiff has selected the proper county. (*Id.*) In opposing a motion to transfer venue, a plaintiff may rely on allegations in an unverified complaint so long as the defendant's declaration does not controvert factual allegations that are essential to the venue analysis. (*Quick v. Corsaro* (1960) 180 Cal.App.2d 831, 835–836 ["[W]here the defendant's affidavit does not deny or otherwise meet these essential allegations in the complaint as they relate to venue, it is insufficient upon which to grant a motion for a change, and the complaint will determine jurisdiction, even though unverified."])

Under Code of Civil Procedure section 395.5, a corporation may be sued in the county "where the obligation or liability arises, or the breach occurs; or in the county where the principal place of business of such corporation is situated." Additionally, Code of Civil Procedure section 393 provides that an action seeking recovery of a statutory penalty may be tried in "the county in which the cause, or some part of the cause, arose." The question here is whether the liability sued upon arose in Contra Costa County. For purposes of laying venue, liability "arises" where the injury occurs. (*Black Diamond Asphalt, Inc. v. Superior Court* (2003) 109 Cal.App.4th 166, 172.) When an employer fails to provide meal and rest breaks under the Labor Code, for example, the legal violation occurs at the work location where the employee was deprived of the break. (*Kirby v. Immoos Fire Protection, Inc.* (2012) 53 Cal.4th 1244, 1251–1257 [the legal violation is nonprovision of meal or rest breaks, which arises at work location, even though remedy is a wage payable at company headquarters].)

Here, the FAC alleges that Defendant "own[s] and operate[s] an industry, business, and establishment within the State of California, including in Contra Costa County" (FAC ¶ 4), that Defendant is "a business entity conducting business in numerous counties throughout the State of California, including in Contra Costa County" (FAC ¶ 10(b)), and that "[t]he wrongful conduct alleged against the Defendants occurred in the County of Contra Costa, California." (FAC ¶ 14.)

Defendant's sole evidence regarding its Contra Costa operations is Elkabbara's declaration stating that Defendant "has never had an office or relevant presence in Contra Costa County," while conceding that Defendant "does less than five percent of its business in Contra Costa County." (Elkabbara Decl., ¶¶ 4-5.) Asserting a lack of "relevant" presence is an unsupported legal conclusion. More significantly, Defendant's admission that it does business in the county undermines the argument that no liability arose there. Mr. Elkabbara never explains what Defendant's business in Contra Costa entails. In the context of a courier logistics service, one would ordinarily expect that conducting business in a county involves dispatching drivers, assigning delivery routes, and transporting packages through or within county boundaries. Absent from his declaration is any statement that no couriers ever drove delivery routes, worked shifts, or incurred wage-and-hour violations in Contra Costa County. Without evidence negating the performance of courier work within Contra Costa as to any represented driver, Defendant cannot overcome the presumption that venue is proper in this county.

Defendant's Attempted Distinction Based on Facilities

Plaintiff relies on *Crestwood Behavioral Health v. Superior Court* (2021) 60 Cal.App.5th 1069, which holds that venue for a representative PAGA claim lies in any county where an alleged Labor Code violation occurred against any aggrieved employee, regardless of where the named plaintiff worked. (*Id.* at p. 1075.) Defendant attempts to distinguish *Crestwood* by emphasizing DCS's lack of brick-and-mortar facilities in Contra Costa County. Showing that DCS lacks an office in Contra Costa does not establish that couriers performed no deliveries and suffered no statutory violations there. Because Defendant bears the burden of disproving every statutory ground for venue, and because Defendant admits that it conducts business in Contra Costa but offers no evidence that couriers did not work there, this attempted distinction is not persuasive.

Defendant also asserts that "transient business activity is not a Labor Code violation." It is unclear what Defendant means by this assertion. Assuming Defendant is arguing that Labor Code violations cannot "arise" in a county merely because a defendant's business activity there is transient or mobile, Defendant cites no legal authority for this proposition. Defendant's characterization of courier operations as merely transient does not satisfy its burden of establishing that no wage and hour claims arose in Contra Costa County.

The Exhaustion Objection to the PAGA Claims

Defendant argues that Plaintiff's PAGA claims were filed prematurely and therefore cannot serve as a basis for venue under *Crestwood*. Defendant notes that Plaintiff submitted notice to the Labor and Workforce Development Agency on December 11, 2025, and filed the FAC asserting PAGA claims that same day, without waiting the 65-day statutory period required by Labor Code section 2699.3, subdivision (a).

On a motion for change of venue under section 396b, the court looks to the allegations of the complaint and does not adjudicate the merits or analyze the sufficiency of individual causes of action. Defendant cites no authority for the proposition that an unexhausted PAGA claim vitiates venue otherwise established under section 395.5 as to all nine causes of action. Therefore, the Court concludes that whether Plaintiff's PAGA cause of action is subject to an exhaustion challenge is an issue for a demurrer, not a venue motion.

The Mixed-Action Rule Does Not Require Transfer

Defendant argues that under the mixed action rule, the presence of Plaintiff's class claims mandates transferring the entire case to Orange County.

The mixed-action rule provides that where a plaintiff alleges multiple causes of action governed by different venue rules, a motion to transfer must be granted as to the entire complaint if the moving defendant is entitled to a change of venue on any single cause of action. (*Brown v. Superior Court* (1984) 37 Cal.3d 477, 488; *Capp Care, Inc. v. Superior Court* (1987) 195 Cal.App.3d 504, 508.) In *Brown*, the California Supreme Court recognized an exception for claims brought under the Fair Employment and Housing Act, holding that FEHA's specific statutory venue provision overrode general venue principles for related causes of action arising from the same facts. (*Brown, supra*, 37 Cal.3d at pp. 486–487.) Defendant claims that because PAGA contains no comparable statutory venue

provision, *Brown* does not apply, and the class claims therefore require transfer of the entire case under the mixed-action rule. Plaintiff responds that PAGA's strong public enforcement policy supports keeping all related claims in a single forum, just as *Brown* held for FEHA claims.

The mixed-action rule only operates if the moving defendant first establishes that venue is improper as to at least one cause of action. (*Brown, supra*, 37 Cal.3d at p. 488; *Capp Care, supra*, 195 Cal.App.3d at p. 508.) As noted, Defendant here bears the burden of negating every statutory ground for venue under Code of Civil Procedure section 395.5. (*Fontaine, supra*, 175 Cal.App.4th at p. 836.)

The FAC alleges that Defendant conducts business in Contra Costa County and that the wrongful conduct occurred here. Defendant treated Plaintiff's county of residence and its own principal place of business as proof that all work and statutory injuries occurred in Orange County. But an individual's residence is not a statutory venue factor under section 395.5, and Defendant cites no authority establishing that wage-and-hour liability arises solely at a worker's residence or an employer's principal place of business. Having admitted it conducts business in Contra Costa County, Defendant bore the burden of showing that Plaintiff and the represented employees neither worked nor suffered violations here. It failed to do so.

Because Defendant has not established improper venue under section 395.5, the mixed-action rule cannot require transfer of the entire action, and the court need not decide whether *Brown's* reasoning extends to PAGA claims.

Enforceability and Scope of the Venue Selection Clause

Because statutory venue is proper in Contra Costa County under section 395.5, the action may only be transferred if the venue clause in the Independent Contractor Agreement requires it. Defendant has failed to establish that the venue clause requires transfer, for two reasons.

First, moving Defendant Discount Courier Services, Inc. has failed to establish that it has standing to enforce the Agreement. A party seeking to enforce a forum or venue selection provision must be a party to the contract or demonstrate an established legal basis permitting enforcement by a nonsignatory, such as third-party beneficiary status, succession, assignment, or agency. (See *Bancomer, S.A. v. Superior Court* (1996) 44 Cal.App.4th 1450, 1458–1461.) Here, the Agreement identifies the contracting entity as "DCS Management, LLC," a Florida limited liability company. Defendant Discount Courier Services, Inc. is not a signatory, nor is it identified as a contracting party. Although Mr. Elkabbara characterizes Exhibit A as "the written agreement between DCS and Plaintiff," Defendant provides no evidence establishing the legal relationship between Discount Courier Services, Inc. and DCS Management, LLC. Without such evidence, Defendant cannot enforce a contractual clause in an agreement to which it is a nonsignatory.

Second, Plaintiff argues the Agreement's venue provision does not cover his claims. The clause is drafted to encompass only litigation "arising out of" the agreement. Under California law, whether a dispute-resolution provision covers a particular dispute depends on whether the clause is broad or narrow. (See, e.g., *Rice v. Downs* (2016) 248 Cal.App.4th 175, 186; *Ramos v. Superior Court* (2018) 28 Cal.App.5th 1042, 1051–1052.) Clauses limited to disputes "arising from" or "arising out of" an agreement are generally interpreted as narrow clauses that apply only to disputes regarding the interpretation and performance of the contract itself. (*Rice, supra*, 248 Cal.App.4th at pp. 186–187;

Ramos, *supra*, 28 Cal.App.5th at p. 1052.) In contrast, clauses that add more expansive phrasing such as "or relating to" or "in connection with" are construed broadly and may reach extracontractual tort or statutory claims having their roots in the parties' working relationship. (*Ramos, supra*, 28 Cal.App.5th at pp. 1051–1052.)

Here, Paragraph 24 contains no broad "relating to" language; it is confined to litigation "arising out of this agreement." Under *Elijahjuan v. Superior Court* (2012) 210 Cal.App.4th 15, Plaintiff's claims do not arise under the Agreement. In *Elijahjuan*, workers who signed independent contractor agreements brought statutory misclassification and wage claims under the Labor Code. The Court of Appeal held that these claims did not arise out of the contracts because the workers were not seeking to enforce rights created by the agreements. (*Id.* at p. 21.) As the court explained, worker classification depends on the governing statutory standards and the actual work performed, rather than the contractual label chosen by the parties. (*Id.* at pp. 21–22.) *Elijahjuan* confirmed that while an agreement may serve as evidence of the relationship, statutory Labor Code claims do not "arise out of the contract, involve the interpretation of any contract terms, or otherwise require there to be a contract." (*Elijahjuan, supra*, 210 Cal.App.4th at pp. 21–24; see also *Ramos, supra*, 28 Cal.App.5th at p. 1052 [citing *Elijahjuan* as an example of a narrow clause that failed to cover statutory misclassification claims].)

Plaintiff does not allege a breach of the Agreement, nor does Plaintiff seek to enforce any promised term of compensation under it. Instead, the action seeks to enforce statutory protections under California law regarding minimum wages, overtime, meal and rest periods, wage statements, and expense reimbursements. Because those duties exist independently of the Agreement and do not turn on its interpretation or performance, they do not "arise out of" the Agreement.

Because Defendant lacks standing to enforce the Agreement and because the statutory claims do not arise out of it, the Court does not reach Plaintiff's alternative argument that he did not knowingly and voluntarily agreed to venue in Orange County.

Transfer for the Convenience of Witnesses

In its opening brief, Defendant raised the convenience of witnesses as a ground for transfer, asserting all witnesses work or reside in Orange County. In opposition, Plaintiff argued that any transfer based on witness convenience is premature before an answer has been filed, and unsupported because Defendant identified no nonparty witnesses. In its reply, Defendant clarified that it is not moving for a change of venue based on the convenience of witnesses at this time, and stating that it reserves the right to bring a convenience-of-witnesses motion after filing its answer. Because Defendant is not seeking relief under section 397(c) at this time, the Court does not address the issue.

Disposition

Based on the foregoing, Defendant's motion to transfer venue is **denied**.

23. 9:00 AM CASE NUMBER: C25-03412
CASE NAME: BRIAN SWANSON VS. CITY OF SAN RAMON
HEARING ON DEMURRER TO: SECOND AMENDED VERIFIED PETITION FOR WRIT OF MANDATE
FILED BY: TRUMARK HOMES
TENTATIVE RULING:

Before the Court is a demurrer by Respondent City of San Ramon and Real Parties in Interest Trumark Homes and KB Home South Bay, Inc. to the second amended verified petition for writ of mandate. For the reasons set forth, the demurrer is **sustained, without leave to amend.**

Background

Petitioner Brian C. Swanson, AIPC challenges the City of San Ramon Planning Commission's approvals of amendments to two development projects in his operative second amended verified petition for writ of mandate ("2AP"). (2AP ¶ 1.) First, on October 23, 2025, the City filed a Notice of Determination for the project for which Trumark Homes is the sponsor, approving the project Petitioner refers to as "BR 11." (2AP ¶ 9, 14 and Exh. D-6 [Notice of Determination dated October 23, 2025 as to adoption of Resolution Number 12-25 to approve applications by Trumark for a Development Plan Amendment (DPA 2025-0005) and Minor Exception (MX 2025-0003) for the Bishop Ranch 11 Project].) Second, on or about November 5, 2025, the City filed a Notice of Determination for the project for which KB Homes South Bay, Inc. is the sponsor, approving the project Petitioner refers to as "BR 7." (2AP, ¶¶ 10, 15, Exh. E-4 [Notice of Determination dated November 5, 2025 as to adoption of Resolution Number 14-25 to approve applications by KB Home for a Development Plan Amendment (DPA 2025-0007) and Minor Exception (MX 2025-0005) for the Bartlett Bishop Ranch 7 Project].) Petitioner alleges that he submitted written public comments regarding the two projects to the Planning Commission, objecting to the projects before the Planning Commission approved them. (2AP ¶ 7.)

In summary, Petitioner contends that the City failed to comply with the requirements of the California Environmental Quality Act, Public Resources Code section 21000 *et seq.* ("CEQA") in approving the two projects. He alleges that the City violated CEQA by approving the projects in reliance on the General Plan 2040 Environmental Impact Report ("GP 2040 EIR") without conducting subsequent or supplemental environmental review, despite changes in downtown intensity and parking standards, and without consideration of the cumulative and transportation/Vehicle Miles Travelled ("VMT") impacts of the projects, and without consideration of the effectiveness and enforceability of mitigation measures and monitoring. (2AP ¶ 16 and Exhs. D-4 and E-3.)

Swanson filed his initial petition commencing this case on November 24, 2025. In January 2026, Petitioner filed a first amended verified petition for writ of mandate ("FAP") to which the City demurred, and Trumark and KB Homes joined in the demurrer. In an Order After Hearing ("OAH") filed on April 30, 2026, the Court sustained the demurrer to the FAP on the ground that Petitioner failed to exhaust his administrative remedies and failed to allege facts sufficient to excuse his compliance with the exhaustion requirement under the exceptions alleged in the FAP. The Court granted Petitioner leave to amend to attempt to allege additional facts stating grounds for an excuse for Petitioner's lack of exhaustion. (4/30/2026 OAH.)

Petitioner filed his 2AP on May 11, 2026. He alleges (1) a first cause of action for failure to proceed as required by law based on the City's alleged Improper reliance on the General Plan 2040 Prior EIR without subsequent or supplemental review (2AP p. 27), (2) a second cause of action for failure to proceed as required by law based on the City's alleged inadequate project-level and cumulative impact analysis and inadequate VMT/Transportation analysis (2AP p. 28), (3) a third cause of action for inadequate mitigation and monitoring of significant environmental impacts and unlawful deferral of mitigation measures (2AP p. 32), (4) a fourth cause of action based on the City's findings being unsupported by substantial evidence and lacking analytical support (2AP p. 33), and (5) a fifth cause of action for failure to proceed in the manner required by law based on the absence of, or lack of disclosure of, local CEQA procedures and CEQA appeal structure and fees (2AP p. 34).

Legal Standards for Ruling on Demurrer

In general, the same rules of pleading and practice applicable to civil actions apply in writ proceedings, except as otherwise specifically provided. (Code Civ. Proc. § 1109; *Boren v. State Personnel Board* (1951) 37 Cal.2d 634, 638.) In ruling on a demurrer, the Court must accept as true all well-pled factual allegations of the 2AP, but not legal or factual conclusions or contentions of law. (*City of Dinuba v. County of Tulare* (2007) 41 Cal. 4th 859, 865; *Carloss v. County of Alameda* (2015) 242 Cal. App.4th 116, 123.) In determining whether the 2AP states a claim for relief, the Court gives the 2AP "a reasonable interpretation, reading it as a whole and its parts in their context. [Citation omitted.]" (*Evans v. City of Berkeley* (2006) 38 Cal. 4th 1, 6.) The Court also considers matters of which the Court can properly take judicial notice. (*Save Lafayette Trees v. East Bay Regional Park District* (2021) 66 Cal.App.5th 21, 29.) (*See also Evans v. City of Berkeley, supra*, 38 Cal.4th at 6 [" "[A] complaint otherwise good on its face is subject to demurrer when facts judicially noticed render it defective." [Citation.]' [Citations omitted.]"].)

"A demurrer may properly be sustained based on the failure to adequately plead exhaustion of administrative remedies. [Citation omitted.] In order to withstand a demurrer for failure to allege exhaustion of available administrative remedies, the plaintiff must allege facts showing that he did exhaust administrative remedies or facts showing that he was not required to do so. [Citations omitted.]" (*Tejon Real Estate, LLC v. City of Los Angeles* (2014) 223 Cal.App.4th 149, 156.) The exhaustion doctrine does not apply if there is no administrative remedy provided or if the remedy is inadequate. (*Tejon Real Estate, supra*, 223 Cal.App.4th at 155-156 [" 'With limited exceptions, . . . where an adequate administrative remedy is provided . . . , resort to that forum is a "jurisdictional" prerequisite to judicial consideration of the claim.' [Citation omitted.]"].)

Demurring Parties' Request for Judicial Notice

Demurring Parties ask the Court to take judicial notice of Title D - Zoning of the San Ramon Municipal Code ("SRMC") and Resolution 2025-036, "A Resolution of the City Council of the City of San Ramon Adopting the Master Fee Schedule for Various Municipal Services for Fiscal Year 2025/26, and Repealing Resolution 2024-051 ("Fee Schedule Resolution"). (Demurring Parties' RJN Exhs. 1 and 2.) An excerpt of Title D of the SRMC is attached to the 2AP as Exhibit H-4, and the Fee Schedule Resolution and portion of the fee schedule are attached to the 2AP as Exhibit H-2.

Petitioner's objections to the request for judicial notice address (1) the legal implications of the SRMC and Fee Schedule Resolution on the 2AP and Petitioner's allegations as to why he was justified or

excused from exhausting the administrative appeal process, and (2) whether the truth or interpretation of the contents of the documents are reasonably disputable. They do not address whether the Court can properly take judicial notice of the documents, subject to the limitations under the case law.

The Court **grants** the demurring parties' request, subject to the limitations on judicial notice of a document under applicable case law. (Evid. Code §§ 452(b) and 452(c); *StorMedia, Inc. v. Superior Court* (1999) 20 Cal.4th 449, 457, fn. 9 [judicial notice of the existence of filed documents does not extend to the truth of the content of the documents where truth or interpretation of the content of the document is reasonably disputable]; *Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 113-115 [same]; *Joslin v. H.A.S. Ins. Brokerage* (1986) 184 Cal.App.3d 369, 374-375 [same, and adding that "judicial notice of matters upon demurrer will be dispositive only in those instances where there is not or cannot be a factual dispute concerning that which is sought to be judicially noticed."].)

Petitioner's Objections to Demurring Parties' Declarations in Support of Demurrer

Demurring parties filed declarations of their respective attorneys in support of the demurrer. The declarations in part attest to the parties' compliance with the meet and confer process required under Code of Civil Procedure section 430.41(a), and Petitioner does not object to the Court's consideration of the declarations to that extent. Petitioner also does not object to the Court's consideration of the Lysons Declaration to the extent the declarant authenticates the copies of the SRMC and the Fee Schedule Resolution.

A. Objection No. 1

The Court interprets Blackwell Declaration paragraph 11, Klein Declaration paragraph 13, and Lysons Declaration paragraph 13 as advising the Court of the position each declarant took in the meet and confer videoconference as to the demurring parties' position on deficiencies in the 2AP. The Court does not accept or consider that these paragraphs are offered as evidence of the merit of the positions taken by the three counsel during the meet and confer. Based on the Court's interpretation of the statements in those paragraphs, Petitioner's objection is **overruled**.

B. Objection No. 2

The Court **sustains** Petitioner's objection to Lysons Declaration paragraph 14. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) In ruling on a demurrer, the Court considers the documents of which the demurring parties have requested judicial notice, not counsel's summary of the content or import of the content of the documents described in a declaration, whether or not accurate. (*Id.*)

Objection to Petitioner's Late Opposition

Petitioner's opposition was due on September 2, 2026, as Petitioner concedes. He also concedes that the opposition papers were filed after midnight early in the morning on September 3, 2026 and were served electronically on September 3, 2026, not September 2, 2026. The demurring parties object to the Court's consideration of the late opposition. Petitioner has filed a written request for the Court to consider the late opposition and explains his technical problem filing the opposition that caused it to be late. The demurring parties have filed substantive reply papers addressing the merits of the opposition papers, and the Court does not discern that the demurring parties suffered any

meaningful prejudice by the late opposition. Under the circumstances, the Court exercises its discretion to consider the late opposition papers. (Cal. R. Ct., Rule 3.1300(d).)

Petitioner's Declaration in Support of the Opposition

The Court does not consider evidence in ruling on a demurrer except matters subject to judicial notice. (*Donabedian, supra*, 116 Cal.App.4th at 994.) The Court considers some portions of the declaration only as an offer of proof of additional allegations Petitioner may be able to make if leave to amend were granted.

Analysis

The City and real parties Trumark and KB Homes jointly demur to the 2AP in its entirety. Demurring Parties contend the Court has no jurisdiction over the subject of the claims alleged in the 2AP because Petitioner failed to exhaust his administrative remedies before seeking judicial review, and Petitioner has not alleged facts sufficient to excuse his failure to exhaust his administrative remedies. (Code Civ. Proc. § 430.10(a).) For the same reasons, they contend the 2AP fails to allege facts sufficient to state causes of action. (Code Civ. Proc. § 430.10(e).)

Petitioner alleges, and therefore concedes, that he filed the petition initiating this case without first appealing the Planning Commission approvals of BR 11 and BR 7 to the City Council. (2AP ¶ 18, p. 12, l. 220.) He does not allege that he attempted to file appeals of the Planning Commission approvals even without paying a filing fee. (2AP ¶ 18, p. 12, l. 220.) Petitioner opposes the demurrer

A. Exhaustion of Administrative Remedies Doctrine

As the Court stated in the OAH, the California Supreme Court explained the exhaustion of administrative remedies doctrine and the policies underlying the doctrine in *Coachella Valley Mosquito & Vector Control Dist. v. California Public Employment Relations Bd.* (2005) 35 Cal.4th 1072 as follows: "In general, a party must exhaust administrative remedies before resorting to the courts. [Citations omitted.] Under this rule, an administrative remedy is exhausted only upon 'termination of all available, nonduplicative administrative review procedures.' [Citations omitted.] [¶] 'The exhaustion doctrine is principally grounded on concerns favoring administrative autonomy (*i.e., courts should not interfere with an agency determination until the agency has reached a final decision*) and judicial efficiency (*i.e., overworked courts should decline to intervene in an administrative dispute unless absolutely necessary*).' [Citations omitted.] The exhaustion requirement applies to defenses as well as to claims for affirmative relief [citations omitted], and we have described exhaustion of administrative remedies as 'a jurisdictional prerequisite to resort to the courts' [citations omitted]." (*Id.* at 1080 [emphasis added].)

Another court described some of the policies supporting the doctrine and its jurisdictional nature: "The requirement of exhaustion of administrative remedy is founded on the theory that the administrative tribunal is created by law to adjudicate the issue sought to be presented to the court, and the issue is within its special jurisdiction. If a court allows a suit to go forward prior to a final administrative determination, it will be interfering with the subject matter of another tribunal." [Citation omitted.] Consequently, the requirement of exhaustion is a jurisdictional prerequisite, not a matter of judicial discretion. [Citation omitted.]" (*Tahoe Vista Concerned Citizens v. County of Placer* (2000) 81 Cal. App. 4th 577, 589.) (*See also Stop Syar Expansion v. County of Napa* (2021) 63

Cal.App.5th 444, 453 [exhaustion is jurisdictional prerequisite, and whether exhaustion has been satisfied is a question of law for the Court].)

"Section 21177 addresses the exhaustion of administrative remedies in CEQA cases, but it does not prescribe a specific appeal process following a determination a project is exempt from CEQA. Instead CEQA requires that if a nonelected official or decisionmaking body determines a project is exempt from CEQA, the agency must allow for an appeal of that determination to the agency's elected decisionmaking body. (§ 21151, subd. (c).) The Guidelines also provide the 'local lead agency may establish procedures governing such appeals.' (Guidelines, § 15061, subd. (e).)" (*McCann v. City of San Diego* (2021) 70 Cal.App.5th 51, 76.) (*See also Schmid v. City and County of San Francisco* (2021) 60 Cal.App.5th 470, 492-493 [CEQA does not preempt local administrative process; it contemplates local agencies establishing their own procedures, rejecting petitioner's claim he was excused from exhausting local appeal procedure based on argument regarding city's "regulatory morass" and that CEQA preempted the local procedures].)

"Several cases recognize that when an agency elects to adopt an administrative appeal process, the common law rule requiring the exhaustion of administrative remedies applies to CEQA litigation and the scope of the remedy is 'determined by the procedures applicable to the public agency in question.' [Citation omitted.] Thus, 'whether the exhaustion doctrine applies depends on the relevant procedures available in a specific jurisdiction.' [Citation omitted.] Where an appeal process is available and a party fails to exhaust its administrative remedies, it may not bring a judicial action challenging the environmental determination. [Citation omitted.]" (*McCann, supra*, 60 Cal.App.5th at 77 [emphasis added].)

B. Summary of Relevant Appeal Provisions of Zoning Ordinance and Notices to Public of Appeal Rights

Petitioner alleges that the decisions by the Planning Commission that he challenges were characterized by the City as "minor" amendments to previously approved projects subject to the 2040 GP EIR previously certified by the Planning Commission. (2AC ¶¶ 2, 27, 28, 30.) The City concluded the minor amendments did not require subsequent or supplemental environmental review. (2AP ¶¶ 2, 27, 28, 30.)

In its OAH sustaining the demurrer to the FAP, the Court analyzed at length the provisions of Title D of the SRMC, the Zoning Ordinance applicable to all manner of land use issues. The Court examined the scope of Title D and identified specifically the provisions that set forth the availability of appeals from decisions of the Planning Commission and the process for appealing. The Court rejected Petitioner's arguments that the Zoning Ordinance was ambiguous with respect to the broad scope of its coverage or Division 7 covering "Zoning Ordinance Administration," with Division headings which make it clear the Zoning Ordinance covers all manner of issues involving land uses and zoning. The concept of "land uses" by its terms is broad; nothing suggests it would not cover land uses where CEQA may apply.

As the Court previously explained, Division 7's title is not limited to "zoning administration" but rather by its terms applies to the administration of the "Zoning Ordinance." The heading of Chapter II in Division D7 "Zoning Ordinance Administration" "Appeals and Calls for Review" is clear. (*See also, for example*, D1-5(A) under Rules of Interpretation ["Any official interpretation by the Director or Planning Commission shall be available for public review upon request and may be appealed pursuant

to Division D7, Chapter 2"], D2-3(a)(3)(d), D4-32(f), D5-12(A) and (C), D6-18(a)(2) and (6)(c), among approximately 15 sections referring to appeals pursuant to D7, Chapter II].) Division D7 also has a chapter regarding public hearings (Chapter IV) which includes a number of references to CEQA specifically, all under the umbrella of Division D7 Zoning Ordinance Administration, with the hearings clearly related to the substantive matters governed by the prior provisions of the Zoning Ordinance.

Section D7-8(A)(2) provides that "Decisions made by the [Planning] Commission may be appealed to the [City] Council." Any interested party may file an appeal. (SRMC § D7-9.) The appeal "shall be initiated within 10 calendar days of the date of the decision." (SRMC § D7-10.) SRMC Section D7-11(A) describes the method of taking an appeal, which requires the appeal to be filed with the City Clerk accompanied by the applicable filing fee. SRMC Section D7-11 explains that the filing of a timely appeal stays the decision appealed from "until a final decision on the matter has been rendered by the appropriate review authority." (SRMC § D7-11(C).)

Petitioner does not dispute that the first page of each of the Planning Commission agendas for the October 21, 2025 and November 4, 2025 hearings, copies of which are exhibits to the 2AP, includes a notice regarding the right to appeal decisions by the Planning Commission. (2AP Exhs. D-2 and E-1.) The October 21, 2025 agenda explains the public's right to appeal as follows: "If you challenge in Court any zoning or planning actions taken by the Planning Commission, you may be limited to raising only those issues you or someone else raised at the public hearing conducted herein or in written correspondence delivered to the Planning Commission at or prior to the public hearing. Decisions of the Planning Commission may be appealed within 10 (ten) calendar days of decision by filing a letter stating the grounds for the appeal along with the appropriate filing fee in the City Clerk's office." (2AP Exh. D-2, p. 1 [emphasis added].) The November 4, 2025 agenda has identical language regarding the right to appeal. (2AP Exh. E-1, p. 1.) The fee for filing an appeal of a Planning Commission decision is \$4,500. (2AP ¶¶ 17.b.-17.d., 18, among others and Exhs. H-1 and H-2.) Petitioner attaches to the 2AP a copy of the City Clerk webpage with Zoning Appeals instructions. (2AP Exh. H-1.)

C. The Court's Prior Ruling, the Current Demurrer and Opposition, and Petitioner's Allegations Regarding An Exception or Excuse for Noncompliance with the Exhaustion Requirement by Appealing the Planning Commission Decision to the City Council Alleged in the 2AP

In his original petition filed in November 2025 initiating the action, Petitioner did not make any allegation regarding his satisfaction of the administrative exhaustion requirement, only that he satisfied the "CEQA exhaustion" requirement by raising the grounds for violation of CEQA in comments before the Planning Commission before raising them in the original petition. In his FAP, he alleged (a) there was no CEQA-specific appeal process set forth in the Zoning Ordinance so it was not clear what the appeal process was for CEQA-related decisions by the Planning Commission; (b) appeal would have been futile because if a person challenging the decision were unable to enlist the support of a council member to make a "call for review," the appeal was unlikely to be successful; and (c) the appeal fees of \$4,500 per appeal are excessive. The Court rejected these grounds as excusing Petitioner's lack of exhaustion but granted Petitioner leave to amend to attempt to allege more. (4/30/2026 OAH.) Petitioner alleges the same three grounds as excusing his lack of exhaustion in the 2AP, but with expanded factual allegations regarding the appeal fees. (2AP ¶¶ 5, 17-19, 21, 22 at p.

18, ll. 372-379, 36, 66-68.)

1. Adequate Administrative Appeal Available

The demurring parties reiterate their position asserted in their first demurrer that the Zoning Ordinance, as well as the Planning Commission agendas from October 21, 2025 and November 4, 2025, provide administrative appeal procedures for any decision by the Planning Commission, an administrative remedy for review of any Planning Commission decision by the City Council that Petitioner was required to exhaust. Though he continues to allege the lack of a clear appeal procedure applicable to CEQA-related matters, Petitioner does not argue in his opposition that the general administrative appeal available for any Planning Commission decision did not apply to the B 11 and B 7 project decisions contested here.

For all the reasons stated in the Court's April 30, 2026 OAH, the Court rejects the claim as alleging an exception or excuse for not making an administrative appeal of the Planning Commission decisions. An administrative appeal was available and had to be pursued to meet the exhaustion requirement. (*Park Area Neighbors v. Town of Fairfax* (1994) 29 Cal.App.4th 1442, 1145, 1448, 1450 [holding that the "complete failure of PAN's [petitioner's] members to assert any challenge before the planning commission or town council to the project's compliance with density ordinances, the applicability of the adjustment exclusion and the lack of a resolution on traffic study methodology, or to appeal the planning commission's actions in the manner prescribed by the town code, precludes the assertion of those challenges in this judicial proceeding." (Emphasis added.)]; *Environmental Law Fund, Inc. v. Town of Corte Madera* (1975) 49 Cal.App.3d 105, 111 ["Section 18.58.030 of the Corte Madera Municipal Code provides, generally, for an appeal to the town council from any action taken by the planning commission. Section 18.46.070 specifically provides for an appeal to the council from action taken by the planning commission upon an application for a conditional use permit. Section 18.46.070, with which section 18.58.030 is substantially identical in pertinent terms, states: 'Within ten days following the date of a decision of the planning commission . . . , the decision may be appealed to the town council by the applicant *or by any other interested party.*' " (Italics in original, underscoring added.)].)

Petitioner had an administrative remedy and failed to exhaust it regarding both of the decisions subject to this action. (*McCann, supra*, 60 Cal.App.5th at 77 ["Where an appeal process is available and a party fails to exhaust its administrative remedies, it may not bring a judicial action challenging the environmental determination. [Citation omitted.]"].) That Petitioner may not have been aware of or may not have understood his obligation to pursue the right to appeal the B 11 and B 7 decisions of the Planning Commission to the City Council because CEQA is at issue does not mean that he is excused from compliance with the exhaustion requirement. (*Ventura29 LLC v. City of San Buenaventura* (2023) 87 Cal.App.5th 1028, 1041-1042 [holding demurrer to complaint in condemnation action properly sustained for lack of exhaustion of administrative remedies, rejecting petitioner's arguments that his lack of knowledge of the right to appeal and city's failure to inform him of right to appeal excused it from exhaustion requirement].)

2. 2AP Allegations Inadequate to Meet the Futility Exception

Petitioner continues to allege in the 2AP that it was futile for Petitioner to appeal because a comment by the mayor alleged in the 2AP shows that the City Council would not have reversed the Planning

Commission determinations. (2AP ¶¶ 2, 67.) Petitioner also does not argue in his opposition that appeal was futile on this ground. For the reasons stated in the Court's April 30, 2026 OAH, the Court rejects that the 2AP alleges facts sufficient to support futility of an appeal to the City Council under the applicable case law addressed in the prior order. As the Court explained, " 'The futility exception requires that the party invoking the exception "can positively state that the [agency] has declared what its ruling will be on a particular case." ' [Citations omitted.]" (*Coachella Valley Mosquito & Vector Control Dist.*, *supra*, 35 Cal.4th at 1080-1081.) The futility exception is a narrow one. (*Steinhart v. County of Los Angeles* (2010) 47 Cal. 4th 1298, 1313.) It "applies only if the party invoking it can positively state that the administrative agency has declared what its ruling will be in a particular case. [Citation omitted.]" (*Id.* at 1313-1314.) It requires proof that when the appeal would have been submitted to the City Council in this case, the City Council had "predetermined its position." (*Id.* at 1314 [rejecting argument that the position the County took in a subsequent court action alone was a basis for invoking the futility exception].) The 2AP does not allege facts sufficient to meet the futility exception to exhaustion.

3. Exhaustion Futile or Excused Based on Excessive Appeal Fees

The only ground for excuse from the exhaustion requirement that Petitioner addresses in detail in the opposition is the excessive appeal fees. The Court interprets Petitioner's allegations and argument as attempting to allege facts demonstrating the administrative appeal remedy was inadequate because the appeal fees were so high that it made the remedy unavailable as a practical matter.

a. Legal Background

One of the exceptions to the exhaustion of administrative remedies doctrine is that the doctrine does not apply when the administrative remedy is inadequate. (*Ventura29 LLC*, *supra*, 87 Cal. App. 5th at 1038; *Tejon Real Estate*, *supra*, 223 Cal.App.4th at 155-156.) A public entity, such as the City, the City is allowed to charge fees for an appeal involving a CEQA determination. (*Friends of Glendora v. City of Glendora* (2010) 182 Cal.App.4th 573, 580.) In *Friends of Glendora*, the Court of Appeal rejected the argument that CEQA requires fees for filing an administrative appeal of a CEQA determination to be waived. (*Id.* at 580 ["In deference to the mandate of section 21083.1, we decline to interpret CEQA as requiring that agencies such as the City waive any and all of their customary fees for filing administrative appeals of decisions, simply because the appeal is based on CEQA."].) Notably, in that case, the appellant paid the fee under protest but did not raise a challenge to the amount of the fee. (*Id.* at 580, 584.)

The parties have also addressed in connection with the demurrer to the FAP, and they address again in this demurrer, the California Supreme Court's decision in *Sea & Sage Audubon Society, Inc. v. Planning Commission of the City of Anaheim* (1983) 34 Cal.3d 412. The petitioner in that case argued excuse from the exhaustion requirement because the administrative appeal fee of \$607 was arbitrary and excessive. (*Id.* at 419–422.) The Court held that the plaintiffs could not challenge whether the administrative appeal fee was objectively unreasonable on appeal from the summary judgment against them because they had not raised the issue in the trial court in the summary judgment proceedings. The Court also stated that the reasonableness determination required the other parties to have an opportunity to present an evidentiary record on the issue, which they were denied by the plaintiffs failure to meet their burden to raise the issue in the trial court. (*Id.* at 421-422.)

b. Allegations of the 2AP

He alleges that, "The City's unusually high deposit requirement, combined with the absence of a disclosed hardship waiver/reduction mechanism, fee-less appeal procedure, pay-under-protest procedure, and narrow or unclear refundability standards, created a significant economic and procedural barrier to Petitioner's obtaining administrative review." (2AP ¶ 67.) In the 2AP, he alleges not only generally that the appeal fee amount is excessive and burdensome and a barrier to filing appeals, particularly when there are multiple separate determinations each requiring a separate appeal and an appeal fee, but also that the City failed to publish a fee waiver or similar procedure, and that he personally did not have the financial ability to pay the two appeal fees at the time the appeals had to be taken, within ten days of each of the Planning Commission determinations made approximately two weeks apart. (2AP ¶¶ 2, 17.c. ["Petitioner is on a fixed income, has qualified for fee waivers in this Court, and has required disability accommodations (including Communications Access Realtime Translation ('CART')) during these proceedings, paying a \$9,000 deposit within the ten-day window was not economically feasible for Petitioner. Petitioner would have pursued City Council appeals of BR 11 and BR 7 but for this financial barrier and the open-ended time and materials exposure described below."], 17.d., 18 ["Petitioner did not file Planning Commission appeals of BR 11 and BR 7 because the City's published appeal materials required an appeal letter to be filed with the appropriate fee, did not disclose that the City Clerk would accept, process, stay, or schedule a hearing on a fee-less CEQA appeal, and did not disclose any procedure for obtaining a hardship waiver or reduction within the ten-day deadline."], 19 ["This lack of disclosed waiver, reduction, fee-less appeal, pay-under-protest, and partial-refund process, combined with the minimum \$4,500 per-appeal upfront deposit and additional time-and-materials exposure, operates as a practical barrier that discourages or prevents public access to administrative review."], 21 [appeal-deposit fee structure as applied to Petitioner "made the asserted administrative remedy economically infeasible, inadequate, and not practically available."], 21, 36 [comparison of fees to those of other cities], 66, 67.)

Petitioner alleges he made comments on the City's fee schedule subsequent to the approval of BR 11 and BR 7, but he acknowledges the post-approval comments do not provide a basis for excusing exhaustion for the BR 11 and BR 7 approvals preceding them. (2AP ¶¶ 17.e-17.f., 18 [citing March 2026 staff report].) He alleges for the first time in the 2AP that the reason he did not appeal was because he could not afford to pay the appeal filing deposit and because the fee structure as applied to him was a barrier to his filing appeals. (2AP ¶¶ 17.d., 18.)

c. Petitioner's Allegations Regarding the Appeal Fees Do Not Excuse Petitioner's Failure to Appeal, or to Even Attempt to Appeal; The Facts Alleged Are Insufficient to Demonstrate the Appeal Process Was Inadequate or Futile

Petitioner does not allege that he filed an appeal of either of the Planning Commission decisions on the B 11 and B 7 projects to the City Council before filing this action. He does not allege that he made any attempt to file an appeal of either of the decisions. He does not allege that he requested a waiver or reduction of the appeal fees which the City denied, or that he requested a deferral of payment of all or a portion of the appeal fees or a payment plan for satisfying the appeal fees, or any other form of financial accommodation from the City in order to allow him to timely appeal either of the

decisions. There is no allegation that he tried to make a timely appeal of either decision, but that his appeals were rejected for lack of full payment of the appeal deposit fee.

The City also points out that Petitioner does not allege that he availed himself of the "free" remedy for review available under the Zoning Ordinance, a remedy Petitioner acknowledges the City provides which is a "call for review" of a Planning Commission decision. An affected party can request that a member of the City Council "call for review" of a Planning Commission decision, as recognized by Petitioner. (See 2AP ¶ 66.) If a City Council member makes a call for review, the Planning Commission decision is submitted to the full City Council for a review of the Planning Commission decision, and the City Council would have the ability to adopt, modify, or reverse the decision. (Dem. Parties RJN Exh. 1 [SRMC §§ D7-8.B., D7-10, D7-11.B., and D7-12].) Enlisting a council member to make a call for review is not the same as providing the remedy of an appeal. Nevertheless, the demurring parties are correct that Petitioner does not allege that he attempted to enlist any City Council member to make a call for review which may have allowed the B 11 and B 7 decisions to be reviewed by the City Council without Petitioner incurring fees.

Petitioner alleges that the City has no published provisions for fee waivers, reduced fees, deferral of payments, or other accommodations for an interested party who wants to appeal a Planning Commission decision but is not financially able to pay the appeal fee. Petitioner does not cite any authority that allows a party to not even attempt to pursue an administrative appeal remedy by attempting to file the appeal and asking for a reprieve from paying the associated fees or for other financial accommodations from the public agency when the party contends the fees are a financial barrier preventing him from accessing the administrative remedy provided. While Petitioner cites to his comments in April 2025 generally contesting the City's adoption of the 2025/2026 Master Fee Schedule, he does not allege any facts showing that he specifically contested the application of the appeal deposit fees to him by attempting to file appeals of the B 11 and B 7 decisions and protesting having to pay the fees.

Even assuming that the Court can accept Petitioner's new allegations that he would have appealed but did not do so because of the appeal deposit fees, Petitioner cites no authority that supports his position that he was excused from making any attempt to appeal the Planning Commission decisions because he was not able financially to pay the fee deposits in order to satisfy the administration exhaustion requirement. He does not allege that he pursued an alternative to appeal that would have avoided the "barrier" of the appeal fees by trying to enlist the free "call for review" provided under the Zoning Ordinance.

As the Court indicated in its prior OAH, the Court is persuaded by the demurring parties' argument that accepting Petitioner's position that he could dispense with even alleging an attempt to appeal these appealable decisions based on a claim the deposit was too high would undermine the exhaustion of administrative remedies doctrine. A party who simply missed the appeal deadline or chose to ignore it could initiate a judicial proceeding in Court and claim the deposit was too much or that it posed a barrier to his exhaustion of the available administrative remedies because he did not have the financial means to pay the fee and therefore was excused from appealing and exhausting the available administrative remedies. The Court finds these arguments compelling.

The Court is persuaded that even with the additional allegations, the 2AP fails to allege facts sufficient

to excuse Petitioner's failure to exhaust his administrative remedies under the circumstances. (*See, e.g., People v. Sonleitner* (1960) 185 Cal. App. 2d 350, 370-371 [holding the rule of exhaustion of administrative remedies applied where a defendant attempted to defend an action for collection of taxes on the ground his activities did not bring him within the purview of the tax law under which the assessment was made, and stating "Throughout defendant's briefs runs the recurring contention that because the court found that he was financially unable on a given date to deposit the security fixed by the board as a condition to a hearing for redetermination, he should be excused from exhausting his administrative remedies and be permitted to contest the tax in the action brought by the state on the jeopardy determination. . . . This is of course a contention which could be made against any tax and can have no relevancy here. A similar contention was advanced in *Modern Barber Colleges v. California Emp. Stab. Com.*, *supra*, 31 Cal.2d 720, and thus answered at page 732: 'It would be strange indeed if this court were to sanction a practice whereby a taxpayer could regularly refrain from paying taxes, the obligation of which he disputes, and then urge that, by reason of his large delinquency, the ordinary remedies provided for reviewing his liability are inadequate in his particular case.' "].)

d. Sham Pleading Doctrine Applied to the 2AP

The demurring parties argue the sham pleading doctrine applies to Petitioner's new allegations made for the first time in the 2AC that the reason Petitioner did not appeal the B11 and B7 decisions to the City Council was because the appeal deposit fees were excessive, and Petitioner did not have the financial means to pay the deposits and the potential total fees associated with pursuing the appeals. "Under the sham pleading doctrine, plaintiffs are precluded from amending complaints to omit harmful allegations, without explanation, from previous complaints to avoid attacks raised in demurrers or motions for summary judgment. [Citation omitted.]" (*Deveny v. Entropin, Inc.* (2006) 139 Cal.App.4th 408, 425-427.)

The Court in *Hendy v. Losse* (1991) 54 Cal.3d 723 explained the sham pleading doctrine, and the related "truthful pleading" doctrine. The Court explained that the doctrines apply to both verified and unverified complaints and affirmed an order sustaining a demurrer without leave to amend where the plaintiff alleged initially on information and belief that the defendant was an employee and sought to amend to allege that the defendant was an independent contractor, without demonstrating that the original allegation was "the result of inadvertence or mistake, or that he has since discovered a factual basis for alleging" defendant was an independent contractor. (*Id.* at 742-743.) If an amended complaint tries to avoid deficiencies of a prior complaint by pleading matters inconsistent with a prior pleading, the pleader must explain the inconsistencies. (*Larson v. UHS of Rancho Palm Springs* (2014) 230 Cal.App.4th 336, 343-344.) A court is "not bound to accept as true allegations contrary to factual allegations in former pleading in the same case." [Citation.]" [Citations omitted.]" (*Id.*)

Petitioner contends that his allegations that he did not appeal because of the excessively high appeal deposit fees alleged for the first time in the 2AP do not contradict his prior pleadings but rather expand upon the allegations he made in the FAP that the filing fees were excessive and a barrier to appeal. (*See* 2AP ¶¶ 17.c. [paying a \$9,000 deposit was not economically feasible for Petitioner"], 18, 21, 35, and 66, *and compare to* FAP ¶¶ 5 ["[T]he appeal structure and fee level were so unclear and cost-prohibitive, and so unlikely to change the City's CEQA posture, that any additional appeal would have been futile or inadequate."], 17.a ["The City has not adopted, or at a minimum has not clearly disclosed, any CEQA-specific appeal process or fee structure"], 17.b, 17.c [City has not adopted CEQA-

specific fee and appeal structures], 18 ["Petitioner alleges that any requirement to pursue additional City-level appeals and pay additional appeal deposits of approximately \$4,500 per project was not a reasonable or clearly disclosed prerequisite to CEQA judicial review for BR 11 and BR 7, particularly where: (a) Petitioner had already raised CEQA issues during the noticed public hearings; (b) the City lacked clear CEQA-specific appeal procedures; and (c) the City's own statements suggested that appeals would be unlikely to succeed. Under these circumstances, any further administrative appeal would have been futile or inadequate to provide a meaningful remedy, and CEQA issue exhaustion was already satisfied through Petitioner's written comments." (Emphasis added.)], 19 [Petitioner alleges that a separate CEQA appeal requirement "was not adequately noticed or specified in any CEQA implementing procedures" and "the City's appeal-fee structure renders such appeals economically prohibitive, particularly when multiplied across separate project approvals"], 63 ["These unusually high deposits and associated charges, combined with the absence of a clearly identified CEQA appeal path or implementing procedures, create a significant economic and procedural barrier for residents seeking to obtain CEQA review of BR 11 and BR 7 and tend to favor large, well-capitalized downtown landholders and their successor developers over individual community members."], and 64 ["In public comments on April 22 and November 25, 2025, Petitioner raised concerns about the City's appeal fee structure and the lack of an accessible appeal path. (Exhibits E-1 through E-4.)"].)

The Court agrees, as an additional or alternative basis for the ruling, that the sham pleading doctrine applies because a reasonable interpretation of the allegations of the FAP, individually and collectively, is that Petitioner alleged the administrative appeal provisions and fees did not clearly apply to an appeal of a Planning Commission decision involving an alleged CEQA violation, and that the appeal fees were excessive, posing a barrier generally to residents' pursuing appeals, not that they posed a barrier specifically to Petitioner pursuing an appeal because of his financial condition. The original petition did not include any allegations regarding administrative exhaustion. The FAP added allegations regarding administrative exhaustion that, when read collectively, indicate that Petitioner was not fairly apprised of a CEQA-specific appeal path under the local ordinance or of any CEQA-specific appeal fees, and that the general appeal fees were unreasonably high.

Petitioner did not allege in the FAP that Plaintiff failed to appeal the decisions because he did not have the financial ability to pay the fees, as he now alleges in the 2AP. The implication of the allegations in the FAP was that Petitioner did not understand that the appeal provisions of the Zoning Ordinance, including the appeal fees, applied to appeals of any Planning Commission decisions, including appeals asserting a CEQA violation, and that for CEQA appeals, the appeal structure was unreasonably high as a general proposition. Petitioner nowhere alleged in the FAP that the appeal deposit fees were a financial barrier to him appealing the decisions.

Further, Petitioner's arguments in the opposition and his opposing declaration, to the extent the Court can consider it, do not explain why Petitioner did not allege in his prior FAP that the reason he did not appeal the decisions was because he personally could not afford to pay the appeal fees, rather than because the appeal process and the applicable appeal fees were unclear and not clearly disclosed in the Zoning Ordinance or were excessive for individuals in general. While the Court does not find that Petitioner on this record has acted in bad faith, the Court agrees with the demurring parties that the sham pleading doctrine applies. Petitioner has not adequately explained that the

inconsistencies between the 2AP and the FAP were the result of inadvertence or mistake, rather than an attempt to avoid defects in the FAP and the dismissal of the action for failure by Petitioner to exhaust his administrative remedies.

Conclusion and Ruling

For the reasons set forth, the demurrer to the 2AP is **sustained**. Having afforded Petitioner an opportunity to allege a factual and legal basis for excusing his failure to exhaust his administrative remedies to obtain review of the Planning Commission decision by the City Council, and having failed to do so, the Court will **sustain the demurrer without leave to amend**.

24. 9:00 AM CASE NUMBER: C25-03667

CASE NAME: MICHELE BARBARA VS. ALISE MALIKYAR

*HEARING ON MOTION IN RE: CORRECT TYPOGRAPHIC ERROR ON NOTICE OF ENTRY OF JUDGMENT

FILED BY: BARBARA, MICHELE

TENTATIVE RULING:

Summary

This Motion is **denied**. The Court has already adjudicated the ownership of the property owned by Alise Malikyar located at 2324 Tice Valley Blvd., Walnut Creek, CA in the matter, *Alise Malikyar v. Robert Jacobson*, Contra Costa Superior Court MSD20-03656. See also, *Alise Malikyar v. Robert Jacobsen*, Court of Appeal Case No. A166937, where the Court of Appeal affirmed:

After describing various trust documents and Jacobsen's testimony about their import, the court wrote: "While fraud was not expressly alleged in this property dispute, the Court is convinced that Respondent [Jacobsen] engaged in the prior actions to intentionally deprive Petitioner [Malikyar] of her Separate property interest in the Subject Property, to attempt to reconvey the Property to himself and to place the title in the names of different entities to avoid any legal liability. [T] The weight of the evidence allows this Court to find that Respondent [Jacobsen] failed to meet the burden of proof that the Subject Property was conveyed to the Equitec Corporation. The Court finds, instead, Petitioner [Malikyar] is the sole owner of the Subject Property. . . .[p. 4]

It is abundantly clear that Alise Malikyar is the sole owner of 2324 Tice Valley Blvd., Walnut Creek, CA, despite any allegations or proposed judgments entered by Michele Barbara in Nevada. The court believes that these ongoing attempts to circumvent this court's orders amounts to fraud on the Court.

The judgment and notice of entry of judgment filed on December 11, 2025 is **set aside**. Plaintiff's attorney is ordered review the documents in Docket MSD20-03656 and is ordered to show cause to the Court as to why this case should not be dismissed. The Court also requests that the Clerk of the Court relate this case to MSD20-03656, as Michele Barbara is a third party claimant in that case.

25. 9:00 AM CASE NUMBER: C26-00752

CASE NAME: ESTHER DOMINGUEZ VS. FCA US LLC

***HEARING ON MOTION IN RE: STRIKE PLAINTIFF'S CLAIM FOR PUNITIVE DAMAGES**

FILED BY: FCA US LLC

TENTATIVE RULING:

This motion is continued, *sua sponte*, to October 21, 2026 at 9:00 a.m. in Department 16. No appearance is required on September 16, 2026.

26. 9:00 AM CASE NUMBER: C26-00752

CASE NAME: ESTHER DOMINGUEZ VS. FCA US LLC

HEARING ON DEMURRER TO: COMPLAINT

FILED BY: FCA US LLC

TENTATIVE RULING:

This motion is continued, *sua sponte*, to October 21, 2026 at 9:00 a.m. in Department 16. No appearance is required on September 16, 2026.

27. 9:00 AM CASE NUMBER: MSC20-00192

CASE NAME: CARLOS DIAZ VS. CHEVRON CORPORATION

***HEARING ON MOTION IN RE: FOR APPROVAL OF PRIVATE ATTORNEYS GENERAL ACT
REPRESENTATIVE ACTION SETTLEMENT**

FILED BY: DIAZ, CARLOS

TENTATIVE RULING:

Summary

Plaintiff Carlos Diaz ("Plaintiff") on behalf of himself and others similarly situated filed this Motion to Approve the Settlement Agreement reached with Defendant Contra Costa Electric ("Defendant" or "CCE"). The motion is **granted** as set forth herein. No appearance is required at the hearing on September 16, 2026.

Background

The proposed Settlement and Release Agreement ("Settlement") resolves all PAGA claims asserted by Plaintiff on behalf of approximately 850 Aggrieved Employees against Defendant CCE. The Settlement follows more than six and a half years of litigation, including extensive discovery, motion practice, mediation, removal to federal court, and resolution of discovery disputes before the Honorable Judge Edward M. Chen.

The total Gross Settlement Amount is \$775,000, which is non-reversionary. This amount is allocated as follows:

- (1) \$373,450 for PAGA civil penalties (the Net Settlement Amount);
- (2) \$350,000 in attorneys' fees to Plaintiff's Counsel;
- (3) \$35,000 in litigation costs;
- (4) \$10,000 as a service award to Plaintiff Carlos Diaz; and
- (5) \$6,550 for settlement administration expenses to ILYM Group, Inc.

The PAGA penalties of \$373,450 are distributed pursuant to Labor Code section 2699(i): **75% (\$280,087.50)** will be paid to the California Labor and Workforce Development Agency ("LWDA"), and **25% (\$93,362.50)** will be distributed pro rata to approximately 850 Aggrieved Employees. The Aggrieved Employees are CCE employees who worked at Chevron's Richmond or El Segundo refineries between November 27, 2018 and the pay period including April 30, 2026, encompassing approximately 48,000 pay periods.

Individual allocations to Aggrieved Employees will be calculated on a pro rata basis based on the number of weeks each employee worked during the PAGA Period. The Settlement Administrator will issue IRS Form 1099s and checks valid for 180 days, with undeliverable funds ultimately transmitted to the State Controller's Office Unclaimed Property Division, ensuring no "unpaid residue" subject to Code of Civil Procedure section 384(b).

The Settlement provides for a broad release of all PAGA Released Claims, including claims under Labor Code sections 201-204, 210, 226, 226.3, 226.6, 558, 558.1, 1174, 1174.5, 1194, 1194.2, 1197, 1197.1, 2810.3, 2698, 2699, 2699.3, 2699.5, and IWC Wage Order No. 16. Additionally, Plaintiff individually provides a broader general release of all releasable claims against CCE.

Attorney's Fees and Costs

Plaintiff's Counsel (Outten & Golden, LLP and the Law Office of Steven Elster) seek approval of \$350,000 in attorneys' fees and \$35,000 in costs. This represents approximately 12% of the total lodestar of \$2,521,409 (after accounting for fees recovered in the related *Nooter* settlement), resulting in a negative lodestar multiplier of approximately 0.12. Plaintiffs' Counsel claim that over 2,974 hours have been expended on this litigation over 6.5 years.

The \$10,000 service award to Plaintiff recognizes his significant individual contribution, the risks undertaken in prosecuting this action, and his agreement to a broader general release of individual claims valued at approximately \$25,000 in alleged damages. The \$6,550 in administration expenses was the lowest bid obtained through a competitive bidding process among three settlement administrators.

The Settlement represents approximately 3.2% of the maximum potential exposure calculated at \$24,085,000, which assumes 100% violation rates across all alleged Labor Code violations for all 48,000 pay periods. The Settlement is fair, reasonable, and adequate in accordance with PAGA's purpose of deterring Labor Code violations and maximizing enforcement of California's wage and hour laws.

ANALYSIS

The primary determination to be made is whether the proposed settlement is "fair, reasonable, and adequate" under *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801, including "the strength of plaintiffs' case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction ... to the proposed settlement." (See also *Amaro v. Anaheim Arena Management, LLC* (2021) 69 Cal.App.5th 521)

Because this matter also proposes to settle PAGA claims, the Court must also consider the criteria that apply under that statute. Recently, the Court of Appeal's decision in *Moniz v. Adecco USA, Inc.* (2021)

72 Cal.App.5th 56 provided guidance on this issue. In *Moniz*, the court found that the "fair, reasonable, and adequate" standard applicable to class actions applies to PAGA settlements. (Id. at p. 64.) The court also held that the trial court must assess "the fairness of the settlement's allocation of civil penalties between the affected aggrieved employees[.]" (Id. at pp. 64-65.)

This is done in two steps: (1) a preliminary review by the trial court; and (2) a final review after notice has been distributed to the aggrieved employees for their comment or objections. (Cal. Rules of Court, rule 3.769.) First, a party to the settlement moves for "preliminary approval of the settlement." (Id., subd. (c).) The court then approves or denies "certification of a provisional settlement class." (Id., subd. (d).) If preliminary approval is granted, the court sets a final approval hearing and provides for notice to be given to the aggrieved employees. (Id., subd. (e).)

At the final approval hearing, "the court must conduct an inquiry into the fairness of the proposed settlement." (Id., subd. (g).) The court enters judgment thereon if it finds the settlement agreement to be fair. (Id., subd. (h).)

In determining whether to preliminarily approve a settlement, the court should consider "the strength of plaintiff's case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the stage of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction of the aggrieved employees to the proposed settlement." (*Dunk*, supra, 48 Cal.App.4th at p. 1801.) The court must also take into consideration that "[t]he most important factor [is] the strength of the case for the plaintiff on the merits, balanced against the amount offered in settlement." (*Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 118.)

Conclusion

1. Plaintiff's Unopposed Motion for Approval of Private Attorneys General Act Representative Action Settlement is **granted**.
2. The Settlement and Release Agreement is **approved** in its entirety as fair, reasonable, and adequate.
3. The requested \$350,000 in attorneys' fees and \$35,000 in litigation costs are **approved** and awarded to Plaintiff's Counsel, except that the Administrator is ordered to withhold 5% of the fees until a compliance hearing demonstrates that Counsel and the Administrator have complied with this order.
4. The \$10,000 service award to Plaintiff Carlos Diaz is **approved**.
5. The \$6,550 in settlement administration expenses to ILYM Group, Inc. is **approved**.
6. The allocation and distribution of PAGA penalties as set forth in the Settlement: 75% (\$280,087.50) to the Labor and Workforce Development Agency and 25% (\$93,362.50) to Aggrieved Employees is **approved**.
7. The Settlement Administrator is authorized to implement the notice and distribution procedures set forth in the Settlement, including the mailing of Individual Allocation checks to Aggrieved Employees and the transmission of undeliverable funds to the State Controller's Office Unclaimed Property Division.
8. The releases set forth in the Settlement are **approved** and shall be binding upon Plaintiff and all Aggrieved Employees.
9. This action is dismissed with prejudice as to Defendant Contra Costa Electric, Inc., with each party to bear its own costs except as otherwise provided herein.
10. The Court retains jurisdiction over this matter for the limited purpose of enforcing the terms

of the Settlement.

11. Counsel are ordered to obtain a hearing date for the motion for final approval from the Department clerk. Other dates in the scheduled notice process should track as appropriate to the hearing date. Plaintiffs' counsel are to submit a compliance statement ten (10) court days prior to the hearing.
12. Notwithstanding any contrary provision in the settlement agreement, 5% of the attorney's fees are to be withheld by the administrator until released by the Court after review of the compliance statement.
13. The Court may issue a release through an unreported minute order without a hearing on the compliance statement.
14. Plaintiff's Counsel shall prepare and e-file a proposed order conforming to this ruling, attaching this ruling no later than five (5) days from the date of the hearing.
15. No appearance is required at the hearing on September 21, 2026.

Discovery Law & Motion

28. 9:01 AM CASE NUMBER: C22-02598

CASE NAME: RUBEN HERRERA, JR. VS. CONTRA COSTA COMMUNITY COLLEGE DISTRICT, A CALIFORNIA PUBLIC SCHOOL DISTRICT

***HEARING ON MOTION FOR DISCOVERY COMPEL DEPOSITION OF BILL COCKERHAM**

FILED BY: HERRERA, RUBEN

TENTATIVE RULING:

This motion is withdrawn and vacated by stipulation of counsel. No appearance is required on September 16, 2026.